

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES				1. REQUISITION NO. 636-25-1-5058-0030		PAGE 1 OF 95	
OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24, & 30							
2. CONTRACT NO.		3. AWARD/EFFECTIVE DATE		4. ORDER NO.		5. SOLICITATION NUMBER 36C26325Q0265	
						6. SOLICITATION ISSUE DATE 01-22-2025	
7. FOR SOLICITATION INFORMATION CALL:		a. NAME Erica Miller			b. TELEPHONE NO. (No Collect Calls) N/A		8. OFFER DUE DATE/LOCAL TIME 02-20-2025 5:00pm CST
9. ISSUED BY Department of Veterans Affairs NETWORK 23 CONTRACTING OFFICE 1303 5th St Suite 300 Coralville IA 52241				CODE 36C263		10. THIS ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100 % FOR: ☐ SMALL BUSINESS ☐ HUBZONE SMALL BUSINESS ☒ SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ELIGIBLE UNDER THE WOMEN-OWNED SMALL BUSINESS PROGRAM ☐ EDWOSB ☐ 8(A) NAICS: 238220 SIZE STANDARD: \$19 Million	
11. DELIVERY FOR FOB DESTINATION UNLESS BLOCK IS MARKED ☐ SEE SCHEDULE		12. DISCOUNT TERMS		☐ 13a. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)		13b. RATING N/A	
						14. METHOD OF SOLICITATION ☒ RFQ ☐ IFB ☐ RFP	
15. DELIVER TO Department of Veterans Affairs Omaha VA Medical Center Grand Island Medical Center				CODE 36C263		16. ADMINISTERED BY Department of Veterans Affairs NETWORK 23 CONTRACTING OFFICE 1303 5th St, Suite 300 Coralville IA 52241	
17a. CONTRACTOR/OFFEROR		CODE		FACILITY CODE		18a. PAYMENT WILL BE MADE BY Department of Veterans Affairs FMS-VA-2 (101) Financial Services Center PO Box 149971 Austin TX 78714-9971 PHONE: FAX:	
TELEPHONE NO. UEI: EFT:				18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☒ SEE ADDENDUM			
☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER							
19. ITEM NO.	20. See CONTINUATION Page SCHEDULE OF SUPPLIES/SERVICES			21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
	Boiler Safety Device Testing - NWI Contractor to provide all materials, labor, transportation and services in accordance with the statement of work to fulfill the requirement's objectives for Boiler Safety Device Testing. Anticipated Period of Performance: Base Year: 03/10/2025 to 03/09/2026 Option Year 1: 03/10/2026 to 03/09/2027 Option Year 2: 03/10/2027 to 03/09/2028 Option Year 3: 03/10/2028 to 03/09/2029 Option Year 4: 03/10/2029 to 03/09/2030 Wage Determinations attached in solicitation WD 2015-5771 WD 2015-5005 (Use Reverse and/or Attach Additional Sheets as Necessary)						
25. ACCOUNTING AND APPROPRIATION DATA See CONTINUATION Page 636-3650162-5058-851100-2548-010055592 636-25-1-5058-0030 PO# - TBD					26. TOTAL AWARD AMOUNT (For Govt. Use Only)		
☒ 27a. SOLICITATION INCORPORATES BY REFERENCE FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA					☒ ARE ☐ ARE NOT ATTACHED.		
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA					☐ ARE ☐ ARE NOT ATTACHED		
☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN <u>1</u> COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED					29. AWARD OF CONTRACT: REF. _____ OFFER DATED _____ YOUR OFFER ON SOLICITATION (BLOCK 5), INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN IS ACCEPTED AS TO ITEMS:		
30a. SIGNATURE OF OFFEROR/CONTRACTOR				31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)			
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)		30c. DATE SIGNED		31b. NAME OF CONTRACTING OFFICER (TYPE OR PRINT) Jesse Sweesy Contracting Officer		31c. DATE SIGNED	

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SECTION B - CONTINUATION OF SF 1449 BLOCKS

B.1 CONTRACT ADMINISTRATION DATA

1. Contract Administration: All contract administration matters will be handled by the following individuals:

a. CONTRACTOR:

b. GOVERNMENT:

Contracting Officer 36C263
Department of Veterans Affairs
NETWORK 23 CONTRACTING OFFICE
1303 5th St
Suite 300
Coralville IA 52241

2. CONTRACTOR REMITTANCE ADDRESS: All payments by the Government to the contractor will be made in accordance with:

☒ 52.232-33, Payment by Electronic Funds Transfer—System For Award Management, or

☐ 52.232-36, Payment by Third Party

3. INVOICES: Invoices shall be submitted in arrears:

a. Quarterly ☐

b. Semi-Annually ☐

c. Other ☒ Delivery and Acceptance

4. GOVERNMENT INVOICE ADDRESS: All Invoices from the contractor shall be submitted electronically in accordance with VAAR Clause 852.232-72 Electronic Submission of Payment Requests.

ACKNOWLEDGMENT OF AMENDMENTS: The offeror acknowledges receipt of amendments to the Solicitation numbered and dated as follows:

AMENDMENT NO	DATE

1) INTRODUCTION:

- a) Most Department of Veterans Affairs Medical Centers (VAMC) have a central boiler plant to provide steam for heating and air conditioning, domestic hot water, kitchens, and

sterilization. Some medical centers have laundries that utilize steam.

- b) Boiler plant safety, reliability, efficiency, and equipment longevity are paramount concerns of VAMC management. Malfunctioning burners or controls can cause catastrophic events resulting in injuries and death and massive property damage. Inaccurate or inadequate data management and monitoring systems can fail to warn of unsafe or inefficient performance. Regular inspections, testing and calibration by expert technicians are an essential part of a program to address these concerns.
- c) This "Statement of Work" describes the requirements for the inspection, testing and calibration of the boiler plant burners, controls, and instruments by qualified technicians.
- d) The section below labeled Performance Location lists the facilities where the work will be required. The Equipment List section below lists the boilers and components at each facility.

2) Technician Qualifications:

- a) Technicians shall have completed at least a one-year trade school and have five years successful experience in this field. The experience shall be largely with institutional and industrial boiler plants similar in design to the VAMC plant. The VAMC facility manager/engineer may define and accept equivalent qualifications.
- b) Technicians shall demonstrate familiarity with and ready access to the current versions of the following references:
 - i) NFPA 85, Boiler and Combustion Systems Hazards Code.
 - ii) VHA Boiler Plant Safety Device Testing Manual, - current edition.
- c) Technicians shall be equipped with portable electronic flue gas analyzers and other test instruments necessary for the required tests and calibrations, all calibrated within one month of the site visits. At facilities with programmable digital controls, the technicians must be capable of programming the controls and have the appropriate hardware and software for this.

3) Inspection, Testing and Calibration Requirements:

- a) Technicians shall provide all tools and labor necessary to perform inspection, tuning, testing, calibrating, and adjustments of burners and boiler and boiler plant controls as specified below. This shall be done every six months in accordance with a schedule provided by VAMC. VAMC may extend the schedule for burners in limited service.
- b) Instrumentation, monitoring, and data management systems as listed below shall be calibrated every six months.
- c) Provide at least two weeks' notice to the VA Representative prior to performing the work. Work cannot be scheduled during heavy steam load periods. Only one boiler at a time can be out of service for the inspection, testing and calibration procedures. Work must be conducted when the VA Representative or his/her designate is available on site to monitor the work.
- d) VAMC will have the boilers that are to be serviced prepared for the technicians upon their scheduled arrival. This includes having the boilers clean of soot and loose scale;

fully warmed and at normal steam pressure; steam exhaust silencer system operable; all boiler, burner and fuel train pressure gages and thermometers calibrated; fuel meters in accurate operation (pressure/temperature correction factors provided, if applicable); boiler steam flow, stack temperature and flue gas oxygen instruments operating.

- e) VAMC will comply with any other requirements of the test personnel that are considered reasonable by VAMC and have been presented in writing at least two weeks prior to the scheduled testing.
- f) The inspections, testing and calibrations shall comply with:
 - i) The recommendations and requirements of *VHA Boiler Plant Safety Devices Testing Manual, current edition*.
 - ii) The written recommendations of the equipment manufacturers.
 - iii) The requirements and recommendations of NFPA 85 *Boiler and Combustion Systems Hazards Code* including applicable appendices.
 - iv) Burner performance requirements in this document.
- g) A summary of the work is as follows:
 - i) Review boiler plant log sheets and alarm and trouble reports.
 - ii) Review records that show combustion performance (flue gas oxygen and carbon monoxide).
 - iii) Perform overall visual inspection of systems. Verify that systems comply with referenced codes and VAMC requirements stated in this contract.
 - iv) Test and record the operation and set points of all burner/boiler safety interlock devices. Refer to list below. Verify that the set points and operating points are within approximately 20% of normal operating parameters. Make adjustments as necessary and record the new settings. The operation of a device must result in burner shutdown and/or proper alarm operation.
 - v) Operate burner(s) on each fuel from low fire to high fire and back to low fire in at least six increments and record combustion performance (flue gas oxygen, carbon monoxide, NOx where applicable), fuel train pressures, atomizing train pressures, burner pressures, stack temperatures, boiler steam output.
 - vi) Compare the combustion performance data with VAMC requirements (see below) and previous readings. If necessary, make adjustments to the fuel flow and combustion air controllers, control valves and dampers to obtain the required performance. Record the new performance data.
 - vii) Verify accuracy of instrumentation listed below. Verify that all devices are properly selected for the application in terms of type, size, set point range, performance, code approval. Calibrate all instruments that are not within manufacturer's specifications for accuracy.
 - viii) Immediately inform COTR of any recommended repairs or modifications.

- h) All of interlocks and safety devices to be inspected and tested on each boiler/burner/equipment, are contained in the *VHA Boiler Plant Safety Devices Testing Manual, current edition*, along with testing procedures.
- i) Required burner performance (natural gas and fuel oil):
 - i) Turndown (ratio of maximum and minimum firing rates): 10/1 8/1 5/1 4/1
(Refer to original burner specification).
 - ii) Achieve, but do not exceed, boiler maximum steam flow output rating. Measure fuel input at minimum and maximum firing rates.
 - iii) Maximum carbon monoxide: 200 parts per million (ppm)
 - iv) Maximum NO_x: _____ (Refer to original burner specification)
 - v) Flue gas oxygen: 2.5 – 4.2% (Up to 5.2% at loads below 40% of maximum steam output; no upper limit at minimum firing rate; oxygen can be one percentage point higher on oil firing on single-point positioning systems).
 - vi) Flue gas oxygen (low excess air burners): 1.0 – 2.0% (Up to 2.5% at loads below 40% of maximum steam output; no upper limit at minimum firing rate; oxygen can be one percentage point higher on oil firing on single point positioning systems).
 - vii) No visible smoke, except on heavy oil fuel maximum opacity is 20%. Comply with local emissions regulations.
 - viii) Flames shall be stable with no pulsations, shall be retained near burner, no blowoff or flashbacks, no constant flame impingement on refractory or waterwalls.
- j) List of instrumentation and controls to be inspected and calibrated:
 - i) Steam flow transmitters (all).
 - ii) Steam flow recorders/computer readout.
 - iii) Flue gas oxygen sampling, analyzing and recorder/computer readout.
 - iv) Boiler and economizer stack temperature transmitters and recorder/computer readout.
 - v) Master steam pressure and combustion controllers.
 - vi) Boiler outlet draft controllers.
 - vii) Boiler water level controllers.
 - viii) Feedwater deaerator and condensate storage tank water level controllers including overflow.
 - ix) All pressure and temperature sensors and transmitters.
 - x) All signal processing and readout devices.

4) Report Requirements:

- a) Provide complete written report of the inspection fully describing all tests performed, all findings, and recommendations. The report shall have two sections the first section will be in a table form that with four columns:
 - i) The first column labeled "FUNCTION" did the device pass or fail.
 - ii) The second column labeled "Device" list the device number and description in accordance with the *VHA Boiler Plant Safety Devices Testing Manual current edition*.
 - iii) The third labeled "Deficiencies-Recommendations"
 - iv) The fourth column labeled "corrective actions" list any corrective actions taken during the inspection.
- b) The next section shall be in paragraph/bulleted form and list each device individual in accordance with the *VHA Boiler Plant Safety Devices Testing Manual, current edition*. Plus, the section must reference the correct Master Specification and Standard Detail for that device. See sample below.

5.1. Condensate Storage Tank High Water Alarm

Purpose: High water level may be an indication of condensate transfer pump failure that could lead to low water condition in the feedwater deaerator and in the boilers. There may be a failure of make-up water controls.

Recommended set point: 4 inches below overflow level and 2/3 of tank height.

Potential hazards due to failure of high water alarm: Feedwater deaerator running dry and, consequently, boiler feed pumps running dry will cause overheating and damage to pumps and potential for plant shut down. Failure of make-up water controls (in open position) could lead to significant cost from waste of water and condensate from the tank overflow if this occurs over a long time period.

Recommended type of device: Conductivity probe type switch. Float type switches have high failure rate in this application where they are exposed to flash steam that causes seals to harden and prevent float movement.

VA Master Specification section: 23 50 11 (old 15625).

www.va.gov/facmgt/standard/

VA Standard Detail: SD232111-05.pdf www.va.gov/facmgt/standard/

Failure rate of float types: 48% (BEI study of VA boiler plants).

Make and Model: Mercoid Float

Did it function properly: No

Category & Action Time Limit: Upon Failure or Within 5 Years

Comments: Float type switches are not allowed for high water alarms. The VA recommended switch type is a conductivity probe type switch. Install the VA recommended switch and set to alarm at 2/3 of the tank height. There are valves that can isolate this alarm. These valves must be made lockable only in the operating position.

- c) Furnish report within one week of each facility inspection in "Microsoft Word" format by email to the COTR and to the VA Headquarters office designated. Provide hard copies of data sheets and flue gas analyzer "strip" printouts to the COTR within one week of visit.
- d) All safety-related deficiencies shall be immediately reported to the COTR, Boiler Plant Supervisor and/or Chief Engineer during the inspection visit.

5) PERFORMANCE LOCATION:

- a) Department of Veterans Affairs Nebraska-Western Iowa Health Care System, Omaha Division Medical Center, 4101 Woolworth Avenue, Omaha, NE 68105
- b) Department of Veterans Affairs Nebraska-Western Iowa Health Care System, Grand Island Division Medical Center, 2201 N Broadwell Ave, Grand Island, NE 68803

6) EQUIPMENT LIST

- a) This contract calls for the inspection of boiler plant components, calibration of control devices and the testing of Boiler safety Devices for the Department of Veterans Affairs, Nebraska-Western Iowa Health Care System (NWIHCS) at two boiler plants locations.

- b) The equipment to be serviced under this contract is:

i) Omaha

NAME	MANUFACTURER	MFR SERIAL #	TYPE	BURNER MFR	YEAR INSTALLED	NB#	FREQ OF INSPECTION
Boiler #1	Nebraska Boiler	2D1623	Water Tube	Peabody / Gordon Piatt	1973	1585	Annually
Boiler #2	Nebraska Boiler	2D1624	Water Tube	Peabody / Gordon Piatt	1973	1586	Annually
Boiler #3	Johnston Boiler	11114-01	Fire Tube		2015	11244	Annually
DA Tank #1	Shippensburg Pump Co., Inc.	47663	N/A	N/A	2008	1596	Annually
DA Tank #2	Shippensburg Pump Co., Inc.	47664	N/A	N/A	2008		Annually
Dental Building	Peerless LP Boiler	325391-200009				NB62-14	Annually
Fisher House	Mighty Therm 2	C19298045	HW		2019	298045	Annually

ii) Grand Island

NAME	MANUFACTURER	MFR SERIAL #	TYPE	BURNER MFR	YEAR INSTALLED	NB#	FREQ OF INSPECTION
Boiler #1	Superior	17472	Fire Tube	Preferred utilities AP1-200	2013	24058	Annually
Boiler #2	Cleaver Brooks	T7557-1-2	Fire Tube		2021	21637	Annually
Boiler #3	Cleaver Brooks	T7557-1-1	Fire Tube		2021	21599	Annually
DA Tank #1	Precision Boilers, INC	M126540B	N/A	N/A	2008	17948	Annually

TR Boiler	CAMUS	121012297	HW	N/A			Annually
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- c) Equipment is subject to change. The Omaha VA Representative will notify contractor in writing of expected changes to equipment in advance.
- i) Omaha VA is currently in the process of starting a boiler replacement project. During this contract it can be expected that the Omaha VA will transition to temporary boilers, and then to permanent replacement boilers. The contractor should expect this transition during the life cycle of this contract and quote properly.
- ii) Timelines and important changes during the boiler replacement project will be relayed to the Safety Device Contract Contractor as soon as reasonable by the Omaha VA CO/COR or Omaha plant primary contact.
- iii) Any questions about this project can be brought to the CO or Omaha plant primary contact for the details of the project.

7) INSPECTION REQUIREMENTS:

- a) All inspections performed by the designated contractor must be performed in accordance with VA directive 1810.
- b) Annual internal and external inspections are required for each boiler. Internal inspections of the feedwater deaerator pressure vessel and condensate storage tank are required every year (or more frequently if welding repairs have been performed) by a qualified contractor.
- c) Every 6 years an internal inspection and wet magnetic particle test of welds of the pressure vessel interior of each feedwater deaerator pressure vessel must be performed by a qualified contractor.
- d) Every 6 years an inspection of the boiler chimney and stacks must be performed by a qualified contractor.
- e) Inspections required on a 6-year basis shall be performed during the contract base year: 03/10/2025 to 03/09/2026.
- f) At least two weeks' notice to NWIHCS is required prior to an inspection. Also, the inspection must be scheduled for periods when NWIHCS determines that the boilers that will be inspected internally will not be needed for steam supply and when the VA Technical Representative (VATR) or his/her designate is available on site to monitor the inspections. To maintain steam service, only one boiler at a time will be scheduled for internal inspections per inspection visit. Thus, multiple visits per NWIHCS facility will be necessary every year to inspect all the boilers internally.
- g) Feedwater deaerator pressure vessel inspections must be scheduled during periods of low steam demand.
- h) Condensate return tanks must be scheduled during periods of low steam demand.

- i) Coordinate the inspection schedule with the VATR so that NWHCS can prepare the boilers, condensate return tank, and feedwater deaerator for the inspections in advance and have personnel available to monitor the inspections.
- j) Boilers scheduled for internal inspection will be prepared for the inspection by NWHCS prior to the scheduled arrival of the inspector. This includes cooling the boilers to near ambient temperature and having all manways, handholes and furnace access doors open; the boilers cleaned of loose materials waterside and fireside; electrical "lock-out, tag-out" in place; connecting piping isolated; proper illumination provided; compliance with "confined space" access requirements including having safety personnel present in the boiler plant. Similar advance preparations will be made to the feedwater deaerator when it is scheduled for internal inspection.
- k) NWHCS will comply with any other requirements of the inspector that are considered reasonable by NWHCS and have been presented in writing at least two weeks prior to the scheduled inspection.
- l) The boiler and feedwater deaerator inspections shall comply with the guidelines in the current issue of the NATIONAL BOARD INSPECTION CODE, Part RB, Inservice Inspection of Pressure- Retaining Items, and ASME Boiler and Pressure Vessel Code, Section VI or VII as applicable. In addition to those guidelines, the inspections shall comply with all NWHCS requirements as listed in this document.
- m) The inspector must completely enter the internal spaces of the boiler or feedwater deaerator and visually inspect all internal surfaces that can be accessed.
- n) Methods for testing safety devices shall comply with VHA Boiler Plant Safety Device Testing Manual, 8th Edition or most recent edition.
- o) Summary of the minimum inspection requirements for boilers:
 - i) Review the boiler history including: operating conditions, date of last inspection, current inspection certificate, ASME stamping on boiler, National Board registration number, history of repairs and modifications. Review boiler logs, water test reports, and reports on tests performed on the burner controls and interlocks.
 - ii) Assess the external parts of the boilers and boiler accessories and piping and valves for safety, accessibility, proper maintenance and operation, cleanliness, and compliance with codes.
 - iii) Inspect for evidence of leakage of combustion gases or fluids, externally and internally, including all gaskets.
 - iv) Inspect foundations for signs of stress such as cracking or movement.
 - v) Inspect boilers externally and internally for defects including bulges, blisters, cracks, wasted or eroded material, warping, general corrosion, grooving and pitting, damaged insulation.
 - vi) Inspect all accessible internal surfaces for waterside and fireside deposits, including scaling, sediment, debris, carbon deposits.
 - vii) Examine all stays and stayed plates.

- viii) Inspect gas side baffles.
- ix) Inspect internal drum surfaces and steam separating internals.
- x) Inspect soot blowers and verify proper alignment.
- xi) Check for sagging tubes.
- xii) Verify that all nozzles of internal piping such as feedwater admission and bottom blowoff collection are clear with no obstructions.
- xiii) Inspect seating surfaces of manways and handholes.
- xiv) Check that boiler structure is plumb and level with no excessive deformations.
- xv) Check for missing items such as bolts and nuts.
- xvi) Examine all valve and pipe connections to the pressure vessel.
- xvii) Inspect refractory including burner throat, expansion joint, bull ring, furnace seals, furnace walls and floor.
- xviii) Verify proper alignment of burner assembly.
- xix) Inspect furnace for evidence of flame impingement.
- xx) Test operation of water level gage glass.
- xxi) Perform mechanical and electrical inspection of disassembled low water cutouts (disassembly by VA). After reinstallation, test operation to the extent possible. Test low water cutouts on hot boilers by lowering water level gradually.
- xxii) Verify that steam pressure gage is properly calibrated.
- xxiii) Test operation of high steam pressure cutouts on hot boilers by raising steam pressure.
- xxiv) Inspect safety valve installations and verify that the valves have proper capacity and set pressure and valves, drains and vents are properly installed. Verify that valve locking seals are not broken. On boilers that are hot, perform an operation test under pressure to confirm operation at proper set pressures. Operate boiler with burner at high fire to verify adequate steam flow capacity of the safety valves ("accumulation test").
- xxv) Inspect piping connected to the boilers for evidence of leakage, provision for expansion, provision of adequate support, proper alignment, evidence of detrimental conditions.
- xxvi) Inspect piping to the water column, low water cutoffs and alarms, gage glass. Verify that interior of piping is clear of obstructions.
- xxvii) Inspect valves on boiler feedwater, blowdown, drain and steam systems.

xxviii) Provide recommendations for non-destructive testing when the inspections indicate that this is necessary to assure continued safety and reliability under current operating conditions.

p) Summary of the minimum inspection requirements for feedwater deaerators:

- i) Review the feedwater deaerator history including: operating conditions, date of last inspection, current inspection certificate, ASME stamping, National Board registration number, materials of construction, extent of post weld heat treatment, history of repairs and modifications.
- ii) Assess the external parts of the feedwater deaerator and accessories and piping for safety, accessibility, cleanliness. proper operation, and compliance with codes.
- iii) Inspect for evidence of leakage.
- iv) Note feedwater deaerator pressure gage and thermometer readings and verify gage and thermometer accuracy.
- v) Inspect safety valve installation and verify that the valves have proper set pressure and capacity and are properly installed. Perform an operation test under pressure to confirm operation at proper set pressures. Verify that the deaerator can safely withstand the test pressure prior to testing the valve(s) in-situ.
- vi) Verify that non-condensable gas vent line is open and proper orifice is provided to permit venting of gases.
- vii) Inspect support structures for proper integrity and allowance for thermal expansion.

q) Summary of the minimum inspection requirements for condensate tanks:

- i) Review the condensate tank history including: operating conditions, date of last inspection, current inspection certificate, ASME stamping, National Board registration number, materials of construction, extent of post weld heat treatment, history of repairs and modifications.
- ii) Assess the external parts of the condensate tank and accessories and piping for safety, accessibility, cleanliness. proper operation, and compliance with codes.
- iii) Inspect for evidence of leakage.
- iv) Note condensate tank thermometer readings and verify thermometer accuracy.
- v) Inspect support structures for proper integrity and allowance for thermal expansion.

r) Internal inspections (6-year intervals unless otherwise recommended because of welding repairs):

- i) Inspections required on a 6-year basis shall be performed during the contract base year: 03/10/2025 to 03/09/2026.
- ii) Visually inspect all visible pressure vessel surfaces for corrosion, material thinning, deposits, and weld cracking.

- iii) Inspect spray nozzles and trays.
- iv) Certified American Society for Non-Destructive Testing (ASNT) Level II technicians shall perform non-destructive tests using the wet fluorescent magnetic particle (WFMT), ultrasonic testing (UT), and any other necessary non-destructive tests.
 - (1) Completely examine all accessible welds utilizing the WFMT test method. Properly prepare the surfaces before testing.
 - (2) Determine pressure vessel material thickness by UT. Thickness measurement locations shall be selected by dividing the storage tank heads into quadrants and taking measurements at each quadrant on two imaginary rings in each head (eight measurements total). Measurement locations on the shell shall be on each of the quadrants, on four to six locations along the length of the shell (16 to 24 measurements total). The technician may recommend fewer or more tests to the owner, providing justification.
 - (3) Typically, the pressure vessel section containing the deaerator trays and sprays is not accessible for non-destructive testing. The experience is that this section, which is mainly exposed to steam, is less vulnerable to weld failures and material thinning than the storage section which contains condensate and make-up water.
- v) Calculate maximum allowable working pressure rating of vessel based on thickness measurements. Calculate depletion rate of material thickness.

s) Report Requirements:

- i) Provide complete written report fully describing all inspections and tests performed, findings, and recommendations. The condition of all items inspected shall be stated whether acceptable or deficient. All deficiencies shall be fully described along with recommendations for methods of correction. Utilize National Board Forms NB-6 and NB-7, or other similar forms acceptable to owner.
- ii) Provide sketches and photographs as necessary and as requested by owner to show areas identified as not acceptable for continued service or requiring repair.
- iii) Include test data and calculations. Show locations and extent of all non-destructive testing by sketches.
- iv) Furnish report within one week of each facility inspection in "Microsoft Word" format by email to the VATR and to the VA Headquarters office designated in the attachment.
- v) All safety-related deficiencies shall be immediately reported to the VATR during the inspection visit.
- vi) Provide recommendations on need for re-inspections after correction of deficiencies. Cost of re- inspections shall be extra cost negotiated with VA Contracting Officer.

8) INSPECTION, TESTING, AND CALIBRATION BOILER PLANT BURNERS, CONTROLS, SAFETY DEVICES, AND DATA MANAGEMENT

a) Introduction:

- i) Most Department of Veterans Affairs Medical Centers (VAMC) have a central boiler plant to provide steam for heating and air conditioning, domestic hot water, kitchens and sterilization. Some medical centers have laundries that utilize steam.
 - ii) Boiler plant safety, reliability, efficiency and equipment longevity are paramount concerns of VAMC management. Malfunctioning burners or controls can cause catastrophic events resulting in injuries and death and massive property damage. Inaccurate or inadequate data management and monitoring systems can fail to warn of unsafe or inefficient performance. Regular inspections, testing and calibration by expert technicians are an essential part of a program to address these concerns.
 - iii) This "Statement of Work" describes the requirements for the inspection, testing and calibration of the boiler plant burners, controls and instruments by qualified technicians.
- b) Inspection, Testing and Calibration Requirements:
- i) Technicians shall perform inspection, tuning, testing, calibrating, and adjustments of burners and boiler and boiler plant controls as specified below. This shall be done every six months in accordance with a schedule provided by VAMC. VAMC may extend the schedule for burners in limited service.
 - (1) Special consideration is to be made for the Peerless LP Dental boiler, due to the VHA Office of Healthcare Engineering (OHE) concerns the Peerless LP boiler is required to be tuned on a quarterly basis.
 - ii) Instrumentation, monitoring and data management systems as listed below shall be calibrated every six months.
 - iii) Provide at least two weeks' notice to the VA Technical Representative (VATR) prior to performing the work. Work cannot be scheduled during heavy steam load periods. Only one boiler at a time can be out of service for the inspection, testing and calibration procedures. Work must be conducted when the VATR or his/her designate is available on site to monitor the work.
 - iv) VAMC will have the boilers that are to be serviced prepared for the technicians upon their scheduled arrival. This includes having the boilers clean of soot and loose scale; fully warmed and at normal steam pressure; steam exhaust silencer system operable; all boiler, burner and fuel train pressure gages and thermometers calibrated; fuel meters in accurate operation (pressure/temperature correction factors provided, if applicable); boiler steam flow, stack temperature and flue gas oxygen instruments operating.
 - v) VAMC will comply with any other requirements of the test personnel that are considered reasonable by VAMC and have been presented in writing at least two weeks prior to the scheduled testing.
 - vi) The inspections, testing and calibrations shall comply with:
 - (1) The recommendations and requirements of VHA Boiler Plant Safety Devices Testing Manual, most recent edition.
 - (2) The written recommendations of the equipment manufacturers.

- (3) The requirements and recommendations of NFPA 85 Boiler and Combustion Systems Hazards Code including applicable appendices.
 - (4) Burner performance requirements in this document.
- vii) A summary of the work is as follows:
- (1) Review boiler plant log sheets and alarm and trouble reports.
 - (2) Review records that show combustion performance (flue gas oxygen and carbon monoxide).
 - (3) Perform overall visual inspection of systems. Verify that systems comply with referenced codes and VAMC requirements stated in this contract.
 - (4) Test and record the operation and set points of all burner/boiler safety interlock devices. Refer to list below. Verify that the set points and operating points are within approximately 20% of normal operating parameters. Make adjustments as necessary and record the new settings. The operation of a device must result in burner shutdown and/or proper alarm operation.
 - (5) Operate burner(s) on each fuel from low fire to high fire and back to low fire in at least six increments and record combustion performance (flue gas oxygen, carbon monoxide, NO_x where applicable), fuel train pressures, atomizing train pressures, burner pressures, stack temperatures, boiler steam output.
 - (6) Compare the combustion performance data with VAMC requirements (see below) and previous readings. If necessary, make adjustments to the fuel flow and combustion air controllers, control valves and dampers to obtain the required performance. Record the new performance data.
 - (7) Verify accuracy of instrumentation listed below. Verify that all devices are properly selected for the application in terms of type, size, set point range, performance, code approval. Calibrate all instruments that are not within manufacturer's specifications for accuracy.
 - (8) Immediately inform VATR of any recommended repairs or modifications.
- c) A non-inclusive list of interlocks and safety devices to be inspected and tested on each boiler/burner in accordance with VHA Boiler Plant Safety Device Testing Manual, 8th Ed or most recent edition:
- i) Outside Air Damper Interlock with Alarm
 - ii) Low Water Alarm and Cutoffs on Boiler
 - iii) High Water Alarm on Boiler
 - iv) High Boiler Steam Pressure Limit and High High Boiler Steam Pressure Limit
 - Switches
 - v) Steam Safety Valves on Boiler
 - vi) Low Fuel Gas Pressure Cutoff Switch
 - vii) High Fuel Gas Pressure Cutoff Switch
 - viii) Automatic Fuel Gas Shutoff Valves and Solenoid Vent Valve Seat Leakage
 - ix) Automatic Pilot Fuel Gas Shutoff Valves and Automatic Pilot Fuel Gas Solenoid Vent Valve Seat Leakage
 - x) Proof of Closure on Automatic Fuel Shutoff Valves – Natural Gas

- xi) Flame Scanner-for main flame out
 - xii) Flame Scanner Not Sensing Igniter Spark
 - xiii) Igniter Timing
 - xiv) Main Flame Ignition Timing
 - xv) Pre-Purge and Post-Purge Timing
 - xvi) Low-Fire Proving Switch
 - xvii) Forced Draft Damper Wide-Open Pre-Purge Proving Switch
 - xviii) Combustion Air Pressure Switch
 - xix) Purge Airflow Proving Switch
 - xx) Forced Draft Motor Interlock Switches
 - xxi) Outlet Stack Damper Position Interlock Switch
 - xxii) Furnace Pressure Interlock
 - xxiii) Low Pilot Fuel Gas Pressure Cutoff Switch
 - xxiv) Flue Gas Recirculation Damper Interlock
 - xxv) Low Flue Gas Oxygen Level Interlock
 - xxvi) Low Fuel Oil Pressure Cutoff Switch
 - xxvii) High Fuel Oil Pressure Cutoff Switch
 - xxviii) Low Atomizing Media Pressure Switch
 - xxix) Low Atomizing Media Differential Pressure Switch
 - xxx) Secondary Low Atomizing Media Pressure Switch
 - xxxi) Automatic Fuel Oil Shutoff Valves
 - xxxii) Proof of Closure on Automatic Fuel Oil Shutoff Valves
 - xxxiii) Oil Burner Position Switch
- d) A non-inclusive list of interlocks and safety devices to be inspected and tested on each deaerator in accordance with VHA Boiler Plant Safety Device Testing Manual, 8th Ed or most recent edition:
- i) High Water Alarm on Deaerator Tank
 - ii) Low Water Alarm on Deaerator Tank
 - iii) Deaerator Overflow Drain System
 - iv) Deaerator Safety Valve
 - v) Safety Valve Following PRV
- e) A non-inclusive list of interlocks and safety devices to be inspected and tested on each condensate tank in accordance with VHA Boiler Plant Safety Device Testing Manual, 8th Ed or most recent edition:
- i) High Water Alarm on Condensate Tank
 - ii) Low Water Alarm on Condensate Tank
- f) A non-inclusive list of interlocks and safety devices to be inspected and tested for the balance of the plant in accordance with VHA Boiler Plant Safety Device Testing Manual, 8th Ed or most recent edition:
- i) Liquid Relief Valve on Oil Pump Set
 - ii) Propane Pilot Backup System
 - iii) Carbon Monoxide and Combustible Gas Alarms in the Boiler Plant
 - iv) Emergency Stop/Panic Buttons
 - v) High Fuel Gas Pressure Alarm on Main Gas Line
 - vi) High Fuel Gas Pressure Alarm on Propane Line
- g) Report Requirements:

- i) Provide complete written report of the inspection fully describing all tests performed, all findings, and recommendations.
- ii) Furnish report within one week of each facility inspection in "Microsoft Word" format by email to the VATR and to the VA Headquarters office designated. Provide hard copies of data sheets and flue gas analyzer "strip" printouts to the VATR within one week of visit.
- iii) All safety-related deficiencies shall be immediately reported to the VATR during the inspection visit.

9) INSTALLATION/UPDATING TO REVISION 8 FOR BOILER PLANT DEVICES:

- a) This contract calls for the updating of outstanding deficiencies to various devices in the boiler plant for the Omaha/Grand Island VA Facilities during the initial year of the contract. The contractor shall furnish necessary labor, tools, equipment, and transportation to update the deficiencies made at NWIMHC facility for the Omaha and Grand Island Campuses due to the recent release of the 8th edition of the VHA Boiler and Associated Plant Safety Device Testing Manual.
- b) In the event that any work requires shutting down boiler plant operations, close coordination with NWIMHC facility staff is required to minimize disruption of services to our veteran customers. Any required outages shall be kept to a minimum in both number and duration of time as best as capable.
- c) Questions about design and installation should be brought up to the Contract CO/COR and the primary contacts for each boiler plant location.
- d) Before submitting a proposal on the work contained in these specifications, each Contractor should visit both sites, examine the plants, and thoroughly familiarize itself with all existing equipment need requests. No extras will be allowed because of the Contractor's misunderstanding as to the amount of work entailed, or lack of knowledge of existing conditions. To arrange a site visit prior to the bid, contact the (CO/ VA Representative).
- e) The devices listed below shall be connected to the building management systems as feasible.
 - i) Any deviation from this requirement should be discussed with the contract CO/VA Representative and the primary contacts for each boiler plant before submitting proposals.
- f) Services:
 - i) Materials and installation of a High Fuel Gas Pressure Alarm on Main Gas Line (Omaha)
 - ii) Materials and installation of a High Fuel Gas Pressure Alarm on Propane Gas Line (Omaha)
 - iii) Materials and installation of a 2nd Outside Air Damper Interlock with Alarm (Omaha)

- iv) Materials and installation for temperature gauges installed on main steam header (Omaha and Grand Island).
- v) Materials and installation for temperature gauges installed on each pressure branch of the steam header in the boiler plant (Omaha and Grand Island)
- vi) Materials and installation for temperature gauges installed on inlet and outlet of main feedwater pumps (2 pumps in Omaha, 3 pumps in Grand Island)
- vii) Materials and installation for temperature gauges installed on the outlet of condensate pumps (2 pumps in Omaha, 2 pumps in Grand Island)
- viii) Materials and installation for pressure gauges installed on the inlet of the condensate pumps (2 pumps in Grand Island)
- ix) Materials and installation for pressure gauges installed on the outlet of the condensate pumps (2 pumps in Grand Island)
- x) Materials and installation for temperature gauges on the inlet and the outlet of the Deaerator Tanks (2 tanks in Omaha, 1 tank in Grand Island)
- xi) Materials and installation for temperature gauges installed on the inlet and outlet of the condensate tank (1 tank in Grand Island)
- xii) Materials and installation for flow meters installed on condensate return line (2 meters needed in Grand Island)
- xiii) Materials and installation for steam flow meters on the header steam lines (2 meters in Grand Island)
- xiv) Materials and installation for steam flow meters on the #3 boiler steam line (1 meter in Grand Island)
- xv) Calibration for steam flow meters installed on the header and boiler lines (4 meters in Omaha)
- xvi) Materials and installation for flow meters on natural gas lines to boilers (3 meters in Omaha)
- xvii) Calibration for flow meters on natural gas lines to boilers (3 meters in Grand Island)
- xviii) Materials and installation for flow meters on fuel oil lines to the boilers (3 meters in Omaha)
- xix) Materials and calibration for carbon monoxide alarms (Grand Island)
- xx) Materials and installation of ambient temperature gauges for the boiler plant interior spaces and boiler plant building exterior (Grand Island)
- xxi) Materials and installation for a replacement boiler blowdown flash tank (Grand Island)

g) PERFORMANCE PERIOD FOR INSTALLATION/UPDATING:

- i) Repairs shall be made during the base year: 03/10/2025 to 03/09/2026.
- ii) Repairs requiring plant shutdowns shall not be performed during winter heating months to the maximum extent possible. Requested deviations from this must be authorized by the CO/VA Representative before work is to be performed. Planned required outages shall be kept to a minimum in both number and duration of time as best as capable.
- iii) Any planned plant shutdowns require close coordination with NWIMHC facility staff in order to minimize disruption of services to our veteran customers. Planned required outages shall be kept to a minimum in both number and duration of time as best as capable.
- iv) If long lead time on parts have been determined to push past the period of performance, the CO/COR must be notified in writing with an explanation of the delay and the expected delivery times and suggested installation schedules.

10) EMERGENCY CALL OUT FOR MAINTENANCE AT BOILER PLANTS:

- a) This contract calls for the deployment of qualified personnel to assist onsite plant operators in an emergency function to restore peak plant operations in the boiler plant for the Omaha/Grand Island VA Facilities. The contractor shall furnish necessary labor, tools, equipment, and transportation to provide call outs at each NWIMHC facility for the Omaha and Grand Island Campuses.
- b) Call out service is defined as a request for service or to assist in an emergent issue that threatens plant operation, or N+1 plant redundancy, after normal working hours, during weekdays, weekends or holidays, to correct any problem or condition which needs attention deemed necessary by boiler plant supervision.
- c) Contractor shall be responsible for 6 non-scheduled emergency callouts to each NWIMHC facility (ie. 6 callouts to Omaha, and 6 callouts to Grand Island)
 - i) Each callout shall incorporate a \$5000 parts and materials stipend additional to the cost of the troubleshooting/maintenance callout.
 - (1) Parts and materials needing to be replaced must be approved by the CO/COR or the plant primary/secondary alternates, before work is to be performed.
- d) Contractor shall respond to all call outs and be prepared to take corrective action at the site within 2 (two) hours for Omaha and 4 (four) hours for Grand Island.
- e) Minor equipment malfunctions shall be corrected the same day the service call is issued. If circumstances beyond the Contractor's control preclude resolution of the problem the same day, the CO/VA Representative must be notified in writing with an explanation of the delay.
- f) Repair or work proposals in excess of or not covered under this Contract must be authorized in advance by the CO/VA Representative and may be performed during

normal hours of operation.

- g) Any parts and materials needed in excess of the contract, following diagnostics shall be quoted out to the specific NWIMHC facility contact.
- h) Callouts should be considered for a maximum of 8 hours of on-site diagnostic and troubleshooting locally at the Omaha/Grand Island VA Facilities. The 8-hour minimum callout should not consider drive time to the location. The 8-hour clock for each callout starts when the technician enters the facility and begins working.
- i) The following individuals can initiate an emergency callout to the contractor:
 - i) Omaha Boiler Plant Operator Supervisor
 - ii) Grand Island USRO Supervisor
 - iii) M&O Operations Supervisor
 - iv) M&O Assistant Service Line Chief
 - v) M&O Service Line Chief
- j) The Contractor shall submit to the CO/COR and the plant primary contact, within 10 business days of performance, a summary of the completed call out, to include any repairs, inspections, and recommendations. The log shall list the date and time for each event that occurred.

11) ESTIMATED PERFORMANCE PERIOD:

- a) BASE YEAR: 03/10/2025 to 03/09/2026
- b) OPTION YEAR ONE: 03/10/2026 to 03/09/2027
- c) OPTION YEAR TWO: 03/10/2027 to 03/09/2028
- d) OPTION YEAR THREE: 03/10/2028 to 03/09/2029
- e) OPTION YEAR FOUR: 03/10/2029 to 03/09/2030

12) HOURS OF SERVICES:

- a) Normal Operational Hours (i.e. 06:00-17:00)
 - i) A list of federal holidays is at [Federal Holidays \(opm.gov\)](https://www.opm.gov/policy-data-oversight/holidays-leave/federal-holidays/).
 - ii) Any work scheduled outside of normal operational hours must be arranged and approved by the Nebraska-Western Iowa VA Health Care System Engineering with at least 24 hours of advanced notice.

13) REQUIRED CERTIFICATION AND QUALIFICATIONS

- a) Certification: Proof of certification is required when submitting quotes.
- b) "Qualified Professional Inspector" is defined as anyone or combination of:
 - i) A boiler inspector who has a valid commission from the National Board of Boiler and Pressure Vessel Inspectors (NB).
 - ii) A boiler inspector who has qualified by passing a written examination under the laws, rules and regulations of a jurisdiction of a state.
 - iii) A boiler inspector who is regularly employed as a boiler inspector by a jurisdiction which has adopted and administers one or more sections of the American Society of Mechanical Engineers (ASME) Boiler and Pressure Vessel Code as a legal requirement and has a representative serving as a member of the ASME Conference Committee.

- iv) A boiler inspector who is regularly employed by an insurance company which has been licensed or registered by the appropriate authority of a State of the United States to write boiler or pressure vessel insurance.
- c) Qualifications for Non-Destructive-Testing Technicians:
 - i) The technicians shall be certified as being qualified Level II technicians in the non-destructive testing methods to be utilized. The certification shall be in accordance with the requirements of the American Society for Non-Destructive Testing (ASNT).
- d) Inspection, Testing and Calibration Technician Qualifications
 - i) Technicians shall have completed at least a one-year trade school and have five years successful experience in this field. The experience shall be largely with institutional and industrial boiler plants similar in design to the VAMC plant. The VAMC facility manager/engineer may define and accept equivalent qualifications.
 - ii) Technicians shall demonstrate familiarity with and ready access to the current versions of the following references:
 - NFPA 85, Boiler and Combustion Systems Hazards Code.
 - VHA Boiler Plant Safety Device Testing Manual, most recent edition.
 - iii) Technicians shall be equipped with portable electronic flue gas analyzers and other test instruments necessary for the required tests and calibrations, all calibrated within one month of the site visits. At facilities with programmable digital controls, the technicians must be capable of programming the controls and have the appropriate hardware and software for this.

14) REFERENCE MATERIALS:

- a) The "Qualified Professional Inspector" shall demonstrate familiarity with and ready access to the current versions of the following codes and manuals:

- ASME Boiler and Pressure Vessel Code:
 - Section I - Power Boilers
 - Section IV - Heating Boilers
 - Section VI - Care and Operation of Heating Boilers
 - Section VII - Care of Power Boilers
- ASME B31.1, Power Piping Code
- ASME CSD-1, Controls and Safety Devices for Automatically Fired Boilers
- ANSI/NB-23, National Board Inspection Code
- NFPA 85, Boiler and Combustion Systems Hazards Code
- VA Directive 1810 Boiler and Boiler Plant Operations
- VHA Boiler Plant Safety Device Testing Manual, 8th Ed

15) CONTRACTUAL REQUIREMENTS AND PERFORMANCE CRITERIA:

a) REPORTING

- i) The contractor personnel shall report to the VA site representative to sign in and acquire a badge.
- ii) The contractor personnel shall report to the VA site representative to sign out and return the badge before departing the VA facility at the end of each week.
- iii) The contractor personnel shall wear an identification badge provided by VA when working under the resulting contract on Federal property.

- iv) Provide complete written report fully describing all inspections and tests performed, findings, and recommendations. The condition of all items inspected shall be stated whether acceptable or deficient. All deficiencies shall be fully described along with recommendations for methods of correction. Utilize National Board Forms NB-6 and NB-7, or other similar forms acceptable to owner.
- v) Provide sketches and photographs as necessary and as requested by owner to show areas identified as not acceptable for continued service or requiring repair.
- vi) Include test data and calculations. Show locations and extent of all non-destructive testing by sketches.
- vii) Furnish report within one week of each facility inspection in "Microsoft Word" format by email to the VATR and to the VA Headquarters office designated in the attachment.
- viii) All safety-related deficiencies shall be immediately reported to the VATR during the inspection visit.
- ix) Provide recommendations on need for re-inspections after correction of deficiencies. Cost of re- inspections shall be extra cost negotiated with VA Contracting Officer.
- b) **REQUIRED CAPABILITIES**
 - i) The Contractor must be able to provide the products, labor, and the services called for in the solicitation document and must provide the level of insurance specified.
- c) **EXAMINATION OF THE SITE**
 - i) Before submitting a proposal on the work contained in these specifications, each Contractor should visit both sites, examine the plants, and thoroughly familiarize itself with all existing equipment. No extras will be allowed because of the Contractor's misunderstanding as to the amount of work entailed, or lack of knowledge of existing conditions. To arrange a site visit prior to the bid, contact the (CO/VA Representative).
- d) **SITE VISIT**
 - Omaha – February 4th at 9:00AM CST
Department of Veterans Affairs Nebraska-Western Iowa Health Care System, Omaha
Division Medical Center, 4101 Woolworth Avenue, Omaha, NE 68105

Grand Island – February 5th at 9:00AM CST
Department of Veterans Affairs Nebraska-Western Iowa Health Care System, Grand
Island Division Medical Center, 2201 N Broadwell Ave, Grand Island, NE 68803

16) HOURS OF WORK:

- a) Routine Work: Routine work connected with this contract shall be performed between the times of 06:00 and 17:00 local time defined as normal working hours unless explicitly stated in the SOW.
- b) Emergency Work: Emergency work is defined as work performed after normal working hours. As specified earlier, the contractor shall be required in some instances to work other than normal working hours. Approval of the CO/VA Representative or plant primary contact shall be obtained prior to starting work during other than normal working hours to ensure services are needed after hours and are included in this SOW.

17) CONTACT INFORMATION:

- a) The contractor shall provide to the contracting officer and the VA Representative specific mobile number(s), email address (es) and/or SMS texting number(s) which can always be used to alert the contractor, including weeknights, weekends, and holidays. In addition, the Government shall provide the contractor the names of the agency personnel authorized to initiate medical gas and vacuum system service calls, contracting officer, contract monitor, alternate contract monitor. Both parties entering the contractual agreements will include three points of contact as a double redundancy for communication and information relaying.

18) REPORTING AND DOCUMENTATION:

- a) The contractor will be responsible for providing documentation of incremental work completed to the primary and secondary points of contact listed prior. Documentation should be submitted to the VA representatives when maintenance of any kind is performed, inspections of equipment is completed, inventory of materials is certified, or emergency repair work is finished. The documents (in the form of electronic documents, preferably PDFs) should regularly be emailed to the VA representatives at least one week after inspection to include maintenance provided, whether or not the unit passed, and any other deficiencies with the equipment to include cost line items and weekly so that a comprehensive schedule of the contractor's work is retained for records as required by government records agencies.

19) GENERAL REQUIREMENTS

- a) The contractor's personnel, while on VA property, shall adhere to all requirements and regulations that govern the VA Health Care System and its property. Among all other requirements, the VA Health Care System and its property is now entirely smoke-free. No weapons are permitted on the premises.

20) TMS Training required. Training requirement TMS 20939 No Access.**21) NATIONAL ARCHIVES AND RECORDS ADMINISTRATION (NARA) RECORDS MANAGEMENT LANGUAGE FOR CONTRACTS RECORDS MANAGEMENT OBLIGATIONS**

1. *Applicability*
 - 1.1. This clause applies to all Contractors whose employees create, work with, or otherwise handle Federal records, as defined in Section B, regardless of the medium in which the record exists.
2. *Definitions*
 - 2.1. "Federal record" as defined in 44 U.S.C. § 3301, includes all recorded information, regardless of form or characteristics, made or received by a Federal agency under Federal law or in connection with the transaction of public business and preserved or appropriate for preservation by that agency or its legitimate successor as evidence of the organization, functions, policies, decisions, procedures, operations, or other activities of the United States Government or because of the informational value of data in them
 - 2.2. The term Federal record:
 - 2.2.1. includes Department of Veteran Affairs records.
 - 2.2.2. does not include personal materials.
 - 2.2.3. applies to records created, received, or maintained by Contractors pursuant to their Department of Veteran Affairs contract.
 - 2.3. may include deliverables and documentation associated with deliverables.
3. *Requirements*

- 3.1. Contractor shall comply with all applicable records management laws and regulations, as well as National Archives and Records Administration (NARA) records policies, including but not limited to the Federal Records Act (44 U.S.C. chs. 21, 29, 31, 33), NARA regulations at 36 CFR Chapter XII Subchapter B, and those policies associated with the safeguarding of records covered by the Privacy Act of 1974 (5 U.S.C. 552a). These policies include the preservation of all records, regardless of form or characteristics, mode of transmission, or state of completion.
- 3.2. In accordance with 36 CFR 1222.32, all data created for Government use and delivered to, or falling under the legal control of, the Government are Federal records subject to the provisions of 44 U.S.C. chapters 21, 29, 31, and 33, the Freedom of Information Act (FOIA) (5 U.S.C. 552), as amended, and the Privacy Act of 1974 (5 U.S.C. 552a), as amended and must be managed and scheduled for disposition only as permitted by statute or regulation.
- 3.3. In accordance with 36 CFR 1222.32, Contractor shall maintain all records created for Government use or created in the course of performing the contract and/or delivered to, or under the legal control of the Government and must be managed in accordance with Federal law. Electronic records and associated metadata must be accompanied by sufficient technical documentation to permit understanding and use of the records and data.
- 3.4. Department of Veteran Affairs and its contractors are responsible for preventing the alienation or unauthorized destruction of records, including all forms of mutilation. Records may not be removed from the legal custody of Department of Veteran Affairs or destroyed except for in accordance with the provisions of the agency records schedules and with the written concurrence of the Head of the Contracting Activity. Willful and unlawful destruction, damage or alienation of Federal records is subject to the fines and penalties imposed by 18 U.S.C. 2701. In the event of any unlawful or accidental removal, defacing, alteration, or destruction of records, Contractor must report to Department of Veteran Affairs. The agency must report promptly to NARA in accordance with 36 CFR 1230.
- 3.5. The Contractor shall immediately notify the appropriate Contracting Officer upon discovery of any inadvertent or unauthorized disclosures of information, data, documentary materials, records or equipment. Disclosure of non-public information is limited to authorized personnel with a need-to-know as described in the contract action. The Contractor shall ensure that the appropriate personnel, administrative, technical, and physical safeguards are established to ensure the security and confidentiality of this information, data, documentary material, records and/or equipment is properly protected. The Contractor shall not remove material from Government facilities or systems, or facilities or systems operated or maintained on the Government's behalf, without the express written permission of the Head of the Contracting Activity. When information, data, documentary material, records and/or equipment is no longer required, it shall be returned to Department of Veteran Affairs control, or the Contractor must hold it until otherwise directed. Items returned to the Government shall be hand carried, mailed, emailed, or securely electronically transmitted to the Contracting Officer or address prescribed in the contract action. Destruction of records is EXPRESSLY PROHIBITED unless in accordance with Paragraph (4).
- 3.6. The Contractor is required to obtain the Contracting Officer's approval prior to engaging in any contractual relationship (sub-contractor) in support of this contract requiring the disclosure of information, documentary material and/or records generated under, or relating to, contracts. The Contractor (and any sub-contractor) is required to abide by Government and Department of Veteran Affairs guidance for protecting sensitive, proprietary information, classified, and controlled unclassified information.

- 3.7. The Contractor shall only use Government IT equipment for purposes specifically tied to or authorized by the contract and in accordance with Department of Veteran Affairs policy.
- 3.8. The Contractor shall not create or maintain any records containing any non-public Department of Veteran Affairs information that are not specifically tied to or authorized by the contract.
- 3.9. The Contractor shall not retain, use, sell, or disseminate copies of any deliverable that contains information covered by the Privacy Act of 1974 or that which is generally protected from public disclosure by an exemption to the Freedom of Information Act.
- 3.10. The Department of Veteran Affairs owns the rights to all data and records produced as part of this contract. All deliverables under the contract are the property of the U.S. Government for which Department of Veteran Affairs shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any Contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20.
- 3.11. Training. All Contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take Department of Veteran Affairs-provided records management training. The Contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.
- [Note: To the extent an agency requires contractors to complete records management training, the agency must provide the training to the contractor.]

4. *Flow down of requirements to subcontractors*

- 4.1. The Contractor shall incorporate the substance of this clause, its terms and requirements including this paragraph, in all subcontracts under this contract action, and require written subcontractor acknowledgment of same.
- 4.2. Violation by a subcontractor of any provision set forth in this clause will be attributed to the Contractor.

B.2 PRICE/COST SCHEDULE

ITEM NUMBER	DESCRIPTION OF SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Parts and materials for updates to Rev 8 - Omaha Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment	1.00	JB		
0002	Parts and materials for updates to Rev 8 - Grand Island Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment	1.00	JB		
0003	Parts allowance for repairs to boilers during callouts - Omaha Contract Period: Base	6.00	JB		

POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
0004	6.00	JB	
Parts allowance for repairs to boilers during callouts - Grand Island Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
0005	0.00		
Base Year - Safety Device Testing Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
0005AA	1.00	YR	
Annual Boiler Safety Device Testing - Omaha Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
0005AB	1.00	YR	
Annual Boiler Safety Device Testing - Grand Island Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
0005AC	1.00	YR	
Annual Boiler Internal Inspections - Omaha Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
0005AD	1.00	YR	
Annual Boiler Internal Inspections - Grand Island Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding			

of Equipment - Plumbing, Heating, and Waste Disposal Equipment				
0005AE	2.00	YR		
Semi-Annual Boiler burner tuning - Omaha Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment				
0005AF	2.00	YR		
Semi-Annual Boiler burner tuning - Grand Island Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment				
0005AG	2.00	YR		
Quarterly Dental Building Boiler Tuning - Omaha Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment				
0005AH	3.00	YR		
Annual Tank inspections - Omaha Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment				
0005AJ	2.00	YR		
Annual Tank inspections - Grand Island Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment				
0005AK	2.00	YR		
6 year tank inspections - Omaha Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment				
0005AL	1.00	YR		
6 year stack inspections - Omaha Contract Period: Base				

POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
0005AM	1.00	YR	
6 year tank inspections - Grand Island Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
0005AN	1.00	YR	
6 year stack inspections - Grand Island Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
0005AP	2.00	YR	
Semi-Annual Instrument calibrations - Omaha Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
0005AQ	2.00	YR	
Semi-Annual Instrument calibrations - Grand Island Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
0005AR	6.00	YR	
Emergency Callout for Maintenance - Omaha (min. 6 callouts) Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
0005AS	6.00	YR	
Emergency Callout for Maintenance - Grand Island (min. 6 callouts) Contract Period: Base POP Begin: 03-10-2025 POP End: 03-09-2026 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding			

of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
1001	6.00	JB	
Parts allowance for repairs to boilers during callouts - Omaha Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
1002	6.00	JB	
Parts allowance for repairs to boilers during callouts - Grand Island Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
1003	1.00		
Option Year #1 - Safety Device Testing Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
1003AA	1.00	YR	
Annual Boiler Safety Device Testing - Omaha Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
1003AB	1.00	YR	
Annual Boiler Safety Device Testing - Grand Island Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
1003AC	1.00	YR	
Annual Boiler Internal Inspections - Omaha Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
1003AD	1.00	YR	
Annual Boiler Internal Inspections - Grand Island Contract Period: Option 1			

POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment				
1003AE	2.00	YR		
Semi-Annual Boiler burner tuning - Omaha Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment				
1003AF	2.00	YR		
Semi-Annual Boiler burner tuning - Grand Island Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment				
1003AG	2.00	YR		
Quarterly Dental Building Boiler Tuning - Omaha Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment				
1003AH	3.00	YR		
Annual Tank inspections - Omaha Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment				
1003AJ	2.00	YR		
Annual Tank inspections - Grand Island Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment				
1003AK	2.00	YR		
Semi-Annual Instrument calibrations - Omaha Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding				

of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
1003AL	2.00	YR	
Semi-Annual Instrument calibrations - Grand Island Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
1003AM	6.00	YR	
Emergency Callout for Maintenance - Omaha (min. 6 callouts) Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
1003AN	6.00	YR	
Emergency Callout for Maintenance - Grand Island (min. 6 callouts) Contract Period: Option 1 POP Begin: 03-10-2026 POP End: 03-09-2027 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2001	6.00	JB	
Parts allowance for repairs to boilers during callouts - Omaha Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2002	6.00	JB	
Parts allowance for repairs to boilers during callouts - Grand Island Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2003	1.00		
Option Year #2 - Safety Device Testing Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2003AA	1.00	YR	
Annual Boiler Safety Device Testing - Omaha Contract Period: Option 2			

POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2003AB	1.00	YR	
Annual Boiler Safety Device Testing - Grand Island Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2003AC	1.00	YR	
Annual Boiler Internal Inspections - Omaha Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2003AD	1.00	YR	
Annual Boiler Internal Inspections - Grand Island Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2003AE	2.00	YR	
Semi-Annual Boiler burner tuning - Omaha Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2003AF	2.00	YR	
Semi-Annual Boiler burner tuning - Grand Island Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2003AG	2.00	YR	
Quarterly Dental Building Boiler Tuning - Omaha Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding			

of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2003AH	3.00	YR	
Annual Tank inspections - Omaha Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2003AJ	2.00	YR	
Annual Tank inspections - Grand Island Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2003AK	2.00	YR	
Semi-Annual Instrument calibrations - Omaha Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2003AL	2.00	YR	
Semi-Annual Instrument calibrations - Grand Island Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2003AM	6.00	YR	
Emergency Callout for Maintenance - Omaha (min. 6 callouts) Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
2003AN	6.00	YR	
Emergency Callout for Maintenance - Grand Island (min. 6 callouts) Contract Period: Option 2 POP Begin: 03-10-2027 POP End: 03-09-2028 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3001	6.00	JB	
Parts allowance for repairs to boilers during callouts - Omaha Contract Period: Option 3			

POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3002	6.00	JB	
Parts allowance for repairs to boilers during callouts - Grand Island Contract Period: Option 3 POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3003	1.00		
Option Year #3 - Safety Device Testing Contract Period: Option 3 POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3003AA	1.00	YR	
Annual Boiler Safety Device Testing - Omaha Contract Period: Option 3 POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3003AB	1.00	YR	
Annual Boiler Safety Device Testing - Grand Island Contract Period: Option 3 POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3003AC	1.00	YR	
Annual Boiler Internal Inspections - Omaha Contract Period: Option 3 POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3003AD	1.00	YR	
Annual Boiler Internal Inspections - Grand Island Contract Period: Option 3 POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding			

of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3003AE	2.00	YR	
Semi-Annual Boiler burner tuning - Omaha Contract Period: Option 3 POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3003AF	2.00	YR	
Semi-Annual Boiler burner tuning - Grand Island Contract Period: Option 3 POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3003AG	2.00	YR	
Quarterly Dental Building Boiler Tuning - Omaha Contract Period: Option 3 POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3003AH	3.00	YR	
Annual Tank inspections - Omaha Contract Period: Option 3 POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3003AJ	2.00	YR	
Annual Tank inspections - Grand Island Contract Period: Option 3 POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3003AK	2.00	YR	
Semi-Annual Instrument calibrations - Omaha Contract Period: Option 3 POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3003AL	2.00	YR	
Semi-Annual Instrument calibrations - Grand Island Contract Period: Option 3			

POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3003AM	6.00	YR	
Emergency Callout for Maintenance - Omaha (min. 6 callouts) Contract Period: Option 3 POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
3003AN	6.00	YR	
Emergency Callout for Maintenance - Grand Island (min. 6 callouts) Contract Period: Option 3 POP Begin: 03-10-2028 POP End: 03-09-2029 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4001	6.00	JB	
Parts allowance for repairs to boilers during callouts - Omaha Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4002	6.00	JB	
Parts allowance for repairs to boilers during callouts - Grand Island Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4003	1.00		
Option Year #4 - Safety Device Testing Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4003AA	1.00	YR	
Annual Boiler Safety Device Testing - Omaha Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding			

of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4003AB	1.00	YR	
Annual Boiler Safety Device Testing - Grand Island Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4003AC	1.00	YR	
Annual Boiler Internal Inspections - Omaha Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4003AD	1.00	YR	
Annual Boiler Internal Inspections - Grand Island Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4003AE	2.00	YR	
Semi-Annual Boiler burner tuning - Omaha Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4003AF	2.00	YR	
Semi-Annual Boiler burner tuning - Grand Island Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4003AG	2.00	YR	
Quarterly Dental Building Boiler Tuning - Omaha Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4003AH	3.00	YR	
Annual Tank inspections - Omaha Contract Period: Option 4			

POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4003AJ	2.00	YR	
Annual Tank inspections - Grand Island Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4003AK	2.00	YR	
Semi-Annual Instrument calibrations - Omaha Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4003AL	2.00	YR	
Semi-Annual Instrument calibrations - Grand Island Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4003AM	6.00	YR	
Emergency Callout for Maintenance - Omaha (min. 6 callouts) Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
4003AN	6.00	YR	
Emergency Callout for Maintenance - Grand Island (min. 6 callouts) Contract Period: Option 4 POP Begin: 03-10-2029 POP End: 03-09-2030 PRINCIPAL NAICS CODE: 238220 - Plumbing, Heating, and Air-Conditioning Contractors PRODUCT/SERVICE CODE: J045 - Maintenance, Repair, and Rebuilding of Equipment - Plumbing, Heating, and Waste Disposal Equipment			
GRAND TOTAL			

B.3 DELIVERY SCHEDULE

ITEM NUMBER	SHIPPING INFORMATION	QUANTITY	DELIVERY DATE
	SHIP TO: Department of Veterans Affairs Nebraska Western Iowa - Omaha Health Care System 4101 Woolworth Ave Omaha, NE 68105 USA		03-10-2025 to 03-09-2030
	SHIP TO: Department of Veterans Affairs VA Grand Island 2201 Broadwell Ave Grand Island, NE 68803 USA		03-10-2025 to 03-09-2030

SECTION C - CONTRACT CLAUSES

C.1 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2023)

(a) *Inspection/Acceptance.* The Contractor shall only tender for acceptance those items that conform to the requirements of this contract. The Government reserves the right to inspect or test any supplies or services that have been tendered for acceptance. The Government may require repair or replacement of nonconforming supplies or reperformance of nonconforming services at no increase in contract price. If repair/replacement or reperformance will not correct the defects or is not possible, the Government may seek an equitable price reduction or adequate consideration for acceptance of nonconforming supplies or services. The Government must exercise its post-acceptance rights—

(1) Within a reasonable time after the defect was discovered or should have been discovered; and

(2) Before any substantial change occurs in the condition of the item, unless the change is due to the defect in the item.

(b) *Assignment.* The Contractor or its assignee may assign its rights to receive payment due as a result of performance of this contract to a bank, trust company, or other financing institution, including any Federal lending agency in accordance with the Assignment of Claims Act (31 U.S.C. 3727). However, when a third party makes payment (e.g., use of the Governmentwide commercial purchase card), the Contractor may not assign its rights to receive payment under this contract.

(c) *Changes.* Changes in the terms and conditions of this contract may be made only by written agreement of the parties.

(d) *Disputes.* This contract is subject to 41 U.S.C. chapter 71, Contract Disputes. Failure of the parties to this contract to reach agreement on any request for equitable adjustment, claim, appeal or action arising under or relating to this contract shall be a dispute to be resolved in accordance with the clause at Federal Acquisition Regulation (FAR) 52.233-1, Disputes, which is incorporated herein by reference. The Contractor shall proceed diligently with performance of this contract, pending final resolution of any dispute arising under the contract.

(e) *Definitions.* The clause at FAR 52.202-1, Definitions, is incorporated herein by reference.

(f) *Excusable delays.* The Contractor shall be liable for default unless nonperformance is caused by an occurrence beyond the reasonable control of the Contractor and without its fault or negligence such as, acts of God or the public enemy, acts of the Government in either its sovereign or contractual capacity, fires, floods, epidemics, quarantine restrictions, strikes, unusually severe weather, and delays of common carriers. The Contractor shall notify the Contracting Officer in writing as soon as it is reasonably possible after the commencement of any excusable delay, setting forth the full particulars in connection therewith, shall remedy such occurrence with all reasonable dispatch, and shall promptly give written notice to the Contracting Officer of the cessation of such occurrence.

(g) Invoice.

(1) The Contractor shall submit an original invoice and three copies (or electronic invoice, if authorized) to the address designated in the contract to receive invoices. An invoice must include—

(i) Name and address of the Contractor;

(ii) Invoice date and number;

(iii) Contract number, line item number and, if applicable, the order number;

(iv) Description, quantity, unit of measure, unit price and extended price of the items delivered;

(v) Shipping number and date of shipment, including the bill of lading number and weight of shipment if shipped on Government bill of lading;

(vi) Terms of any discount for prompt payment offered;

(vii) Name and address of official to whom payment is to be sent;

(viii) Name, title, and phone number of person to notify in event of defective invoice; and

(ix) Taxpayer Identification Number (TIN). The Contractor shall include its TIN on the invoice only if required elsewhere in this contract.

(x) Electronic funds transfer (EFT) banking information.

(A) The Contractor shall include EFT banking information on the invoice only if required elsewhere in this contract.

(B) If EFT banking information is not required to be on the invoice, in order for the invoice to be a proper invoice, the Contractor shall have submitted correct EFT banking information in accordance with the applicable solicitation provision, contract clause (e.g., 52.232-33, Payment by Electronic Funds Transfer—System for Award Management, or 52.232-34, Payment by Electronic Funds Transfer—Other Than System for Award Management), or applicable agency procedures.

(C) EFT banking information is not required if the Government waived the requirement to pay by EFT.

(2) Invoices will be handled in accordance with the Prompt Payment Act (31 U.S.C. 3903) and Office of Management and Budget (OMB) prompt payment regulations at 5 CFR part 1315.

(h) *Patent indemnity*. The Contractor shall indemnify the Government and its officers, employees and agents against liability, including costs, for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark or copyright, arising out of the performance of this contract, provided the Contractor is reasonably notified of such claims and proceedings.

(i) Payment.—

(1) *Items accepted.* Payment shall be made for items accepted by the Government that have been delivered to the delivery destinations set forth in this contract.

(2) *Prompt payment.* The Government will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and prompt payment regulations at 5 CFR part 1315.

(3) *Electronic Funds Transfer (EFT).* If the Government makes payment by EFT, see 52.212-5(b) for the appropriate EFT clause.

(4) *Discount.* In connection with any discount offered for early payment, time shall be computed from the date of the invoice. For the purpose of computing the discount earned, payment shall be considered to have been made on the date which appears on the payment check or the specified payment date if an electronic funds transfer payment is made.

(5) *Overpayments.* If the Contractor becomes aware of a duplicate contract financing or invoice payment or that the Government has otherwise overpaid on a contract financing or invoice payment, the Contractor shall—

(i) Remit the overpayment amount to the payment office cited in the contract along with a description of the overpayment including the—

(A) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(B) Affected contract number and delivery order number, if applicable;

(C) Affected line item or subline item, if applicable; and

(D) Contractor point of contact.

(ii) Provide a copy of the remittance and supporting documentation to the Contracting Officer.

(6) *Interest.*

(i) All amounts that become payable by the Contractor to the Government under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. 7109, which is applicable to the period in which the amount becomes due, as provided in (i)(6)(v) of this clause, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(ii) The Government may issue a demand for payment to the Contractor upon finding a debt is due under the contract.

(iii) *Final decisions.* The Contracting Officer will issue a final decision as required by 33.211 if—

(A) The Contracting Officer and the Contractor are unable to reach agreement on the existence or amount of a debt within 30 days;

(B) The Contractor fails to liquidate a debt previously demanded by the Contracting Officer within the timeline specified in the demand for payment unless the amounts were not repaid because the Contractor has requested an installment payment agreement; or

(C) The Contractor requests a deferment of collection on a debt previously demanded by the Contracting Officer (see 32.607-2).

(iv) If a demand for payment was previously issued for the debt, the demand for payment included in the final decision shall identify the same due date as the original demand for payment.

(v) Amounts shall be due at the earliest of the following dates:

(A) The date fixed under this contract.

(B) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(vi) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on—

(A) The date on which the designated office receives payment from the Contractor;

(B) The date of issuance of a Government check to the Contractor from which an amount otherwise payable has been withheld as a credit against the contract debt; or

(C) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the Contractor.

(vii) The interest charge made under this clause may be reduced under the procedures prescribed in FAR 32.608-2 in effect on the date of this contract.

(j) *Risk of loss.* Unless the contract specifically provides otherwise, risk of loss or damage to the supplies provided under this contract shall remain with the Contractor until, and shall pass to the Government upon:

(1) Delivery of the supplies to a carrier, if transportation is f.o.b. origin; or

(2) Delivery of the supplies to the Government at the destination specified in the contract, if transportation is f.o.b. destination.

(k) *Taxes.* The contract price includes all applicable Federal, State, and local taxes and duties.

(l) *Termination for the Government's convenience.* The Government reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the Contractor shall immediately stop all work hereunder and shall immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the Contractor shall be paid a percentage of the contract price reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the Contractor can demonstrate to the satisfaction of the Government using its standard record keeping system, have resulted from the termination. The Contractor shall not be required to

comply with the cost accounting standards or contract cost principles for this purpose. This paragraph does not give the Government any right to audit the Contractor's records. The Contractor shall not be paid for any work performed or costs incurred which reasonably could have been avoided.

(m) *Termination for cause.* The Government may terminate this contract, or any part hereof, for cause in the event of any default by the Contractor, or if the Contractor fails to comply with any contract terms and conditions, or fails to provide the Government, upon request, with adequate assurances of future performance. In the event of termination for cause, the Government shall not be liable to the Contractor for any amount for supplies or services not accepted, and the Contractor shall be liable to the Government for any and all rights and remedies provided by law. If it is determined that the Government improperly terminated this contract for default, such termination shall be deemed a termination for convenience.

(n) *Title.* Unless specified elsewhere in this contract, title to items furnished under this contract shall pass to the Government upon acceptance, regardless of when or where the Government takes physical possession.

(o) *Warranty.* The Contractor warrants and implies that the items delivered hereunder are merchantable and fit for use for the particular purpose described in this contract.

(p) *Limitation of liability.* Except as otherwise provided by an express warranty, the Contractor will not be liable to the Government for consequential damages resulting from any defect or deficiencies in accepted items.

(q) *Other compliances.* The Contractor shall comply with all applicable Federal, State and local laws, executive orders, rules and regulations applicable to its performance under this contract.

(r) *Compliance with laws unique to Government contracts.* The Contractor agrees to comply with 31 U.S.C. 1352 relating to limitations on the use of appropriated funds to influence certain Federal contracts; 18 U.S.C. 431 relating to officials not to benefit; 40 U.S.C. chapter 37, Contract Work Hours and Safety Standards; 41 U.S.C. chapter 87, Kickbacks; 49 U.S.C. 40118, Fly American; and 41 U.S.C. chapter 21 relating to procurement integrity.

(s) *Order of precedence.* Any inconsistencies in this solicitation or contract shall be resolved by giving precedence in the following order:

(1) The schedule of supplies/services.

(2) The Assignments, Disputes, Payments, Invoice, Other Compliances, Compliance with Laws Unique to Government Contracts, and Unauthorized Obligations paragraphs of this clause;

(3) The clause at 52.212-5.

(4) Addenda to this solicitation or contract, including any license agreements for computer software.

(5) Solicitation provisions if this is a solicitation.

(6) Other paragraphs of this clause.

(7) The Standard Form 1449.

(8) Other documents, exhibits, and attachments

(9) The specification.

(t) [Reserved]

(u) *Unauthorized Obligations.*

(1) Except as stated in paragraph (u)(2) of this clause, when any supply or service acquired under this contract is subject to any End User License Agreement (EULA), Terms of Service (TOS), or similar legal instrument or agreement, that includes any clause requiring the Government to indemnify the Contractor or any person or entity for damages, costs, fees, or any other loss or liability that would create an Anti-Deficiency Act violation (31 U.S.C. 1341), the following shall govern:

(i) Any such clause is unenforceable against the Government.

(ii) Neither the Government nor any Government authorized end user shall be deemed to have agreed to such clause by virtue of it appearing in the EULA, TOS, or similar legal instrument or agreement. If the EULA, TOS, or similar legal instrument or agreement is invoked through an "I agree" click box or other comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements), execution does not bind the Government or any Government authorized end user to such clause.

(iii) Any such clause is deemed to be stricken from the EULA, TOS, or similar legal instrument or agreement.

(2) Paragraph (u)(1) of this clause does not apply to indemnification by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(v) *Incorporation by reference.* The Contractor's representations and certifications, including those completed electronically via the System for Award Management (SAM), are incorporated by reference into the contract.

(End of Clause)

ADDENDUM to FAR 52.212-4 CONTRACT TERMS AND CONDITIONS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

Clauses that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following clauses are incorporated into 52.212-4 as an addendum to this contract:

C.2 52.217-8 OPTION TO EXTEND SERVICES (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to

prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 15 days.

(End of Clause)

C.3 52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 days; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 20 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five (5) years.

(End of Clause)

C.4 SUPPLEMENTAL INSURANCE REQUIREMENTS

In accordance with FAR 28.307-2 and FAR 52.228-5, the following minimum coverage shall apply to this contract:

(a) Workers' compensation and employers liability: Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a Contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least \$100,000 is required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers.

(b) General Liability: \$500,000.00 per occurrences.

(c) Automobile liability: \$200,000.00 per person; \$500,000.00 per occurrence and \$20,000.00 property damage.

(d) The successful bidder must present to the Contracting Officer, prior to award, evidence of general liability insurance without any exclusionary clauses for asbestos that would void the general liability coverage.

(End of Clause)

C.5 VAAR 852.219-73 VA NOTICE OF TOTAL SET-ASIDE FOR CERTIFIED SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESSES (JAN 2023) (DEVIATION)

(a) *Definition.* for the Department of Veterans Affairs, “*Service-disabled Veteran-owned small business concern or SDVOSB*”:

(1) Means a small business concern—

(i) Not less than 51 percent of which is owned by one or more service-disabled Veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled Veterans or eligible surviving spouses (see VAAR 802.201, Surviving Spouse definition);

(ii) The management and daily business operations of which are controlled by one or more service-disabled Veterans (or eligible surviving spouses) or, in the case of a service-disabled Veteran with permanent and severe disability, the spouse or permanent caregiver of such Veteran;

(iii) The business meets Federal small business size standards for the applicable North American Industry Classification System (NAICS) code identified in the solicitation document;

(iv) The business has been certified for ownership and control pursuant to 38 U.S.C. 8127, 13 CFR 128, and is listed as certified in the SBA certification database at <https://veterans.certify.sba.gov/>; and

(v) The business agrees to comply with VAAR subpart 819.70 and Small Business Administration (SBA) regulations regarding small business size, government contracting, and the Veteran Small Business Certification Program at 13 CFR parts 121, 125, and 128.

(2) The term “Service-disabled Veteran” means a Veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

(3) The term “small business concern” has the meaning given that term under section 3 of the Small Business Act (15 U.S.C. 632).

(4) The term “small business concern owned and controlled by Veterans with service-connected disabilities” has the meaning given the term “*small business concern owned and controlled by service-disabled veterans*” under section 3(q)(2) of the Small Business Act (15 U.S.C. 632(q)(2)).

(5) The term “*SDVOSB participant*” or *certified SDVOSB* means a small business that has been certified in the SBA Veteran Small Business Certification Program and listed in the SBA certification database (see 13 CFR 128.102).

(b) *General.* In order for a concern to submit an offer and be eligible for the award of an SDVOSB set-aside or sole source contract, the concern must qualify as a small business concern under the size standard corresponding to the NAICS code assigned to the contract and be listed as an SDVOSB participant in the SBA certification database as set forth in 13 CFR 128.

(1) Offers received from entities that are not certified SDVOSBs and listed in the SBA certification database at the time of offer shall not be considered.

(2) Any award resulting from this solicitation shall be made to a certified SDVOSB listed in the SBA certification database who is eligible at the time of submission of offer(s) and at the time of award.

(3) The requirements in this clause apply to any contract, order or subcontract where the firm receives a benefit or preference from its designation as an SDVOSB, including set-asides, sole source awards, and evaluation preferences.

(c) *Representation.* Pursuant to 38 U.S.C. 8127(e), only certified SDVOSBs listed in the SBA certification database are considered eligible to receive award of a resulting contract. By submitting an offer, the prospective contractor represents that it is an eligible and certified SDVOSB as defined in this clause, 13 CFR 121, 125, and 128, and VAAR subpart 819.70.

(d) *Agreement/LOS certification.* When awarded a contract action, including orders under multiple award contracts, an SDVOSB agrees that in the performance of the contract, the SDVOSB shall comply with requirements in VAAR subpart 819.70 and SBA regulations on small business size, and government contracting programs at 13 CFR part 121 and part 125, including the non-manufacturer rule and limitations on subcontracting (LOS) requirements in 13 CFR 121.406(b) and 13 CFR 125.6. For the purpose of limitations on subcontracting, only certified SDVOSBs listed in the SBA certification database (including independent contractors) shall be considered eligible and/or “similarly situated” (i.e., a firm that has the same small business program status as the prime contractor). An otherwise eligible firm further agrees to comply with the required LOS certification requirements in this solicitation (see 852.219–75 or 852.219–76 as applicable). These requirements are summarized as follows:

(1) *Services.* In the case of a contract for services (except construction), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance to firms that are not certified SDVOSBs listed in the SBA certification database (excluding direct costs to the extent they are not the principal purpose of the acquisition and the SDVOSB/ VOSB does not provide the service, such as airline travel, cloud computing services, or mass media purchases). When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract.

(2) *Supplies/products.*

(i) In the case of a contract for supplies or products (other than from a non-manufacturer of such supplies), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not certified SDVOSBs listed in the SBA certification database. When a contract includes both supply and services, the 50 percent limitation shall apply only to the supply portion of the contract.

(ii) In the case of a contract for supplies from a non-manufacturer, the SDVOSB prime contractor will supply the product of a domestic small business manufacturer or processor, unless a waiver as described in 13 CFR 121.406(b)(5) has been granted. Refer to 13 CFR 125.6(a)(2)(ii) for guidance pertaining to multiple item procurements.

(3) *General construction.* In the case of a contract for general construction, the SDVOSB prime contractor will not pay more than 85% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not certified SDVOSBs listed in the SBA certification database.

(4) *Special trade construction contractors.* In the case of a contract for special trade contractors, no more than 75% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, may be paid to firms that are not certified SDVOSBs listed in the SBA certification database.

(5) *Subcontracting.* An SDVOSB subcontractor must meet the NAICS size standard assigned by the prime contractor and be certified and listed in the SBA certification database to count as similarly situated. Any work that a first tier SDVOSB subcontractor further subcontracts will count towards the percent of subcontract amount that cannot be exceeded. For supply or construction contracts, the cost of materials is excluded and not considered to be subcontracted. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the portion of the contract with the preponderance of the expenditure upon which the assigned NAICS is based. For information and more specific requirements, refer to 13 CFR 125.6.

(e) *Required limitations on subcontracting compliance measurement period.* An SDVOSB shall comply with the limitations on subcontracting as follows:

[] By the end of the base term of the contract or order, and then by the end of each subsequent option period; or

[] By the end of the performance period for each order issued under the contract.

(f) *Joint ventures.* A joint venture may be considered eligible as an SDVOSB if the joint venture complies with the requirements in 13 CFR 128.402 and the managing joint venture partner makes the representations under paragraph (c) of this clause. A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (d) of this clause will be performed by the aggregate of the joint venture participants.

(g) *Precedence.* The VA Veterans First Contracting Program, as defined in VAAR 802.101, subpart 819.70, and this clause, takes precedence over any inconsistencies between the requirements of the SBA Veteran Small Business Certification Program and the VA Veterans First Contracting Program.

(h) *Misrepresentation.* Pursuant to 38 U.S.C. 8127(g), any business concern, including all its principals, that is determined by VA to have willfully and intentionally misrepresented a company's SDVOSB status is subject to debarment from contracting with the Department for a period of not less than five years (see VAAR 809.406–2 Causes for Debarment).

(End of Clause)

C.6 VAAR 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING—CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (JAN 2023) (DEVIATION)

(a) Pursuant to 38 U.S.C. 8127(l)(2), the offeror certifies that—

(1) If awarded a contract (see FAR 2.101 definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows:

(i) ☐ *Services*. In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

(ii) ☐ *General construction*. In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(iii) ☒ *Special trade construction contractors*. In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not certified SDVOSBs listed in the SBA certification database as set forth in 852.219–73 or certified VOSBs listed in the SBA certification database as set forth in 852.219–74. Any work that a similarly situated certified SDVOSB/VOSB subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(2) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/ VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

(i) Referral to the VA Suspension and Debarment Committee;

(ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and

(iii) Prosecution for violating 18 U.S.C. 1001.

(b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract. Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

(d) Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification

I hereby certify that if awarded the contract, [insert name of offeror] will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of [insert name of offeror].

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address: _____

(End of Clause)

C.7 VAAR 852.232-72 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2018)

(a) *Definitions.* As used in this clause—

(1) *Contract financing payment* has the meaning given in FAR 32.001;

(2) *Designated agency office* means the office designated by the purchase order, agreement, or contract to first receive and review invoices. This office can be contractually designated as the receiving entity. This office may be different from the office issuing the payment;

(3) *Electronic form* means an automated system transmitting information electronically according to the accepted electronic data transmission methods and formats identified in

paragraph (c) of this clause. Facsimile, email, and scanned documents are not acceptable electronic forms for submission of payment requests;

(4) *Invoice payment* has the meaning given in FAR 32.001; and

(5) *Payment request* means any request for contract financing payment or invoice payment submitted by the contractor under this contract.

(b) *Electronic payment requests.* Except as provided in paragraph (e) of this clause, the contractor shall submit payment requests in electronic form. Purchases paid with a Government-wide commercial purchase card are considered to be an electronic transaction for purposes of this rule, and therefore no additional electronic invoice submission is required.

(c) *Data transmission.* A contractor must ensure that the data transmission method and format are through one of the following:

(1) VA's Electronic Invoice Presentment and Payment System at the current website address provided in the contract.

(2) Any system that conforms to the X12 electronic data interchange (EDI) formats established by the Accredited Standards Center (ASC) and chartered by the American National Standards Institute (ANSI).

(d) *Invoice requirements.* Invoices shall comply with FAR 32.905.

(e) *Exceptions.* If, based on one of the circumstances in this paragraph (e), the Contracting Officer directs that payment requests be made by mail, the Contractor shall submit payment requests by mail through the United States Postal Service to the designated agency office. Submission of payment requests by mail may be required for—

(1) Awards made to foreign vendors for work performed outside the United States;

(2) Classified contracts or purchases when electronic submission and processing of payment requests could compromise the safeguarding of classified or privacy information;

(3) Contracts awarded by contracting officers in the conduct of emergency operations, such as responses to national emergencies;

(4) Solicitations or contracts in which the designated agency office is a VA entity other than the VA Financial Services Center in Austin, Texas; or

(5) Solicitations or contracts in which the VA designated agency office does not have electronic invoicing capability as described above.

(End of Clause)

C.8 VAAR 852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)

The Contracting Officer reserves the right to designate an Administrative Contracting Officer (ACO) for the purpose of performing certain tasks/duties in the administration of the contract. Such designation will be in writing through an ACO Letter of Delegation and will identify the

responsibilities and limitations of the ACO. A copy of the ACO Letter of Delegation will be furnished to the Contractor.

(End of Clause)

C.9 52.252-2 CLAUSES INCORPORATED BY REFERENCE (FEB 1998)

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>
<https://www.va.gov/oal/library/vaar/>

(End of Clause)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.203-17	CONTRACTOR EMPLOYEE WHISTLEBLOWER RIGHTS	NOV 2023
52.204-9	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	JAN 2011
52.204-13	SYSTEM FOR AWARD MANAGEMENT MAINTENANCE	OCT 2018
52.204-18	COMMERCIAL AND GOVERNMENT ENTITY CODE MAINTENANCE	AUG 2020
52.228-5	INSURANCE—WORK ON A GOVERNMENT INSTALLATION	JAN 1997
852.203-70	COMMERCIAL ADVERTISING	MAY 2018
852.204-70	PERSONAL IDENTITY VERIFICATION OF CONTRACTOR PERSONNEL	MAY 2020

(End of Addendum to 52.212-4)

C.10 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (NOV 2024)

(a) The Contractor shall comply with the following Federal Acquisition Regulation (FAR) clauses, which are incorporated in this contract by reference, to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

(1) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(2) 52.204–23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115–91).

(3) 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115–232).

(4) 52.209-10, Prohibition on Contracting with Inverted Domestic Corporations (NOV 2015).

(5) 52.232-40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801).

(6) 52.233-3, Protest After Award (AUG 1996) (31 U.S.C. 3553).

(7) 52.233-4, Applicable Law for Breach of Contract Claim (OCT 2004) (Public Laws 108-77 and 108-78 (19 U.S.C. 3805 note)).

(b) The Contractor shall comply with the FAR clauses in this paragraph (b) that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

☒ (1) 52.203-6, Restrictions on Subcontractor Sales to the Government (JUN 2020), with Alternate I (NOV 2021) (41 U.S.C. 4704 and 10 U.S.C. 4655).

☐ (2) 52.203-13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

☐ (3) 52.203-15, Whistleblower Protections under the American Recovery and Reinvestment Act of 2009 (JUN 2010) (Section 1553 of Pub. L. 111-5). (Applies to contracts funded by the American Recovery and Reinvestment Act of 2009.)

☐ (4) 52.203-17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712); this clause does not apply to contracts of DoD, NASA, the Coast Guard, or applicable elements of the intelligence community—see FAR 3.900(a).

☒ (5) 52.204-10, Reporting Executive Compensation and First-Tier Subcontract Awards (JUN 2020) (Pub. L. 109-282) (31 U.S.C. 6101 note).

☐ (6) [Reserved]

☒ (7) 52.204-14, Service Contract Reporting Requirements (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☐ (8) 52.204-15, Service Contract Reporting Requirements for Indefinite-Delivery Contracts (OCT 2016) (Pub. L. 111-117, section 743 of Div. C).

☒ (9) 52.204-27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117-328).

☐ (10) 52.204-28, Federal Acquisition Supply Chain Security Act Orders—Federal Supply Schedules, Governmentwide Acquisition Contracts, and Multi-Agency Contracts. (DEC 2023) (Pub. L. 115-390, title II).

☒ (11)(i) 52.204-30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115-390, title II).

☐ (ii) Alternate I (DEC 2023) of 52.204-30.

[X] (12) 52.209–6, Protecting the Government’s Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment. (NOV 2021) (31 U.S.C. 6101 note).

[X] (13) 52.209-9, Updates of Publicly Available Information Regarding Responsibility Matters (OCT 2018) (41 U.S.C. 2313).

[] (14) [Reserved]

[] (15) 52.219–3, Notice of HUBZone Set-Aside or Sole-Source Award (OCT 2022) (15 U.S.C. 657a).

[] (16) 52.219–4, Notice of Price Evaluation Preference for HUBZone Small Business Concerns (OCT 2022) (if the offeror elects to waive the preference, it shall so indicate in its offer) (15 U.S.C. 657a).

[] (17) [Reserved]

[] (18)(i) 52.219-6, Notice of Total Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

[] (ii) Alternate I (MAR 2020) of 52.219-6.

[] (19)(i) 52.219-7, Notice of Partial Small Business Set-Aside (NOV 2020) (15 U.S.C. 644).

[] (ii) Alternate I (MAR 2020) of 52.219-7.

[X] (20) 52.219-8, Utilization of Small Business Concerns (FEB 2024) (15 U.S.C. 637(d)(2) and (3)).

[] (21)(i) 52.219–9, Small Business Subcontracting Plan (SEP 2023) (15 U.S.C. 637(d)(4)).

[] (ii) Alternate I (NOV 2016) of 52.219-9.

[] (iii) Alternate II (NOV 2016) of 52.219-9.

[] (iv) Alternate III (JUN 2020) of 52.219–9.

[] (v) Alternate IV (SEP 2023) of 52.219–9.

[] (22)(i) 52.219-13, Notice of Set-Aside of Orders (MAR 2020) (15 U.S.C. 644(r)).

[] (ii) Alternate I (MAR 2020) of 52.219-13.

[] (23) 52.219–14, Limitations on Subcontracting (OCT 2022) (15 U.S.C. 657s).

[] (24) 52.219-16, Liquidated Damages—Subcontracting Plan (SEP 2021) (15 U.S.C. 637(d)(4)(F)(i)).

[X] (25) 52.219–27, Notice of Set-Aside for, or Sole-Source Award to, Service-Disabled Veteran-Owned Small Business (SDVOSB) Concerns Eligible Under the SDVOSB Program (FEB 2024) (15 U.S.C. 657f).

☒ (26) (i) 52.219–28, Post-Award Small Business Program Representation (FEB 2024) (15 U.S.C. 632(a)(2)).

☐ (ii) Alternate I (MAR 2020) of 52.219–28.

☐ (27) 52.219–29, Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (OCT 2022) (15 U.S.C. 637(m)).

☐ (28) 52.219–30, Notice of Set-Aside for, or Sole-Source Award to, Women-Owned Small Business Concerns Eligible Under the Women-Owned Small Business Program (OCT 2022) (15 U.S.C. 637(m)).

☐ (29) 52.219-32, Orders Issued Directly Under Small Business Reserves (MAR 2020) (15 U.S.C. 644(r)).

☐ (30) 52.219–33, Nonmanufacturer Rule (SEP 2021) (15 U.S.C. 657s).

☒ (31) 52.222-3, Convict Labor (JUN 2003) (E.O. 11755).

☐ (32) 52.222–19, Child Labor—Cooperation with Authorities and Remedies (FEB 2024) (E.O. 13126).

☒ (33) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

☒ (34)(i) 52.222–26, Equal Opportunity (SEP 2016) (E.O. 11246).

☐ (ii) Alternate I (FEB 1999) of 52.222-26.

☒ (35)(i) 52.222–35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

☐ (ii) Alternate I (JUL 2014) of 52.222-35.

☒ (36)(i) 52.222–36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

☐ (ii) Alternate I (JUL 2014) of 52.222-36.

☒ (37) 52.222–37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

☒ (38) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496).

☒ (39)(i) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

☐ (ii) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

☒ (40) 52.222-54, Employment Eligibility Verification (MAY 2022). (E. O. 12989). (Not applicable to the acquisition of commercially available off-the-shelf items or certain other types of commercial products or commercial services as prescribed in FAR 22.1803.)

☐ (41)(i) 52.223-9, Estimate of Percentage of Recovered Material Content for EPA-Designated Items (MAY 2008) (42 U.S.C.6962(c)(3)(A)(ii)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (ii) Alternate I (MAY 2008) of 52.223-9 (42 U.S.C. 6962(i)(2)(C)). (Not applicable to the acquisition of commercially available off-the-shelf items.)

☐ (42) 52.223-11, Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (43) 52.223-12, Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (44) 52.223-20, Aerosols. (MAY 2024) (42 U.S.C. 7671, *et seq.*).

☐ (45) 52.223-21, Foams (MAY 2024). (42 U.S.C. 7671, *et seq.*).

☒ (46) 52.223-23, Sustainable Products and Services (MAY 2024) (E.O. 14057, 7 U.S.C. 8102, 42 U.S.C. 6962, 42 U.S.C. 8259b, and 42 U.S.C. 7671I).

☐ (47)(i) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

☐ (ii) Alternate I (JAN 2017) of 52.224-3.

☐ (48)(i) 52.225-1, Buy American—Supplies (OCT 2022) (41 U.S.C. chapter 83).

☐ (ii) Alternate I (OCT 2022) of 52.225-1.

☐ (49)(i) 52.225-3, Buy American—Free Trade Agreements—Israeli Trade Act (NOV 2023) (19 U.S.C. 3301 note, 19 U.S.C. 2112 note, 19 U.S.C. 3805 note, 19 U.S.C. 4001 note, 19 U.S.C. chapter 29 (sections 4501-4732), Public Law 103-182, 108-77, 108-78, 108-286, 108-302, 109-53, 109-169, 109-283, 110-138, 112-41, 112-42, and 112-43).

☐ (ii) Alternate I [Reserved].

☐ (iii) Alternate II (DEC 2022) of 52.225-3.

☐ (iv) Alternate III (FEB 2024) of 52.225-3.

☐ (v) Alternate IV (OCT 2022) of 52.225-3.

☐ (50) 52.225–5, Trade Agreements (NOV 2023) (19 U.S.C. 2501, *et seq.*, 19 U.S.C. 3301 note

☒ (51) 52.225-13, Restrictions on Certain Foreign Purchases (FEB 2021) (E.O.'s, proclamations, and statutes administered by the Office of Foreign Assets Control of the Department of the Treasury).

☐ (52) 52.225–26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

☐ (53) 52.226-4, Notice of Disaster or Emergency Area Set-Aside (NOV 2007) (42 U.S.C. 5150).

☐ (54) 52.226-5, Restrictions on Subcontracting Outside Disaster or Emergency Area (NOV 2007) (42 U.S.C. 5150).

☒ (55) 52.226-8, Encouraging Contractor Policies to Ban Text Messaging While Driving (MAY 2024) (E.O. 13513)

☒ (56) 52.229-12, Tax on Certain Foreign Procurements (FEB 2021).

☐ (57) 52.232-29, Terms for Financing of Purchases of Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☐ (58) 52.232-30, Installment Payments for Commercial Products and Commercial Services (NOV 2021) (41 U.S.C. 4505, 10 U.S.C. 3805).

☒ (59) 52.232-33, Payment by Electronic Funds Transfer—System for Award Management (OCT 2018) (31 U.S.C. 3332).

☐ (60) 52.232-34, Payment by Electronic Funds Transfer—Other than System for Award Management (JUL 2013) (31 U.S.C. 3332).

☐ (61) 52.232-36, Payment by Third Party (MAY 2014) (31 U.S.C. 3332).

☐ (62) 52.239-1, Privacy or Security Safeguards (AUG 1996) (5 U.S.C. 552a).

☒ (63) 52.240-1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act—Covered Foreign Entities (NOV 2024) (Sections 1821-1826, Pub. L. 118-31, 41 U.S.C. 3901 note prec.).

☐ (64) 52.242-5, Payments to Small Business Subcontractors (JAN 2017)(15 U.S.C. 637(d)(13)).

☐ (65)(i) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631).

☐ (ii) Alternate I (APR 2003) of 52.247-64.

☐ (iii) Alternate II (NOV 2021) of 52.247-64.

(c) The Contractor shall comply with the FAR clauses in this paragraph (c), applicable to commercial services, that the Contracting Officer has indicated as being incorporated in this contract by reference to implement provisions of law or Executive orders applicable to acquisitions of commercial products and commercial services:

☒ (1) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

☒ (2) 52.222-42, Statement of Equivalent Rates for Federal Hires (MAY 2014) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

Employee Class

Monetary Wage-Fringe Benefits

☒ (3) 52.222-43, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (29 U.S.C. 206 and 41 U.S.C. chapter 67).

☐ (4) 52.222-44, Fair Labor Standards Act and Service Contract Labor Standards—Price Adjustment (MAY 2014) (29 U.S.C 206 and 41 U.S.C. chapter 67).

☐ (5) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).

☐ (6) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).

☒ (7) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

☒ (8) 52.222-62, Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

☐ (9) 52.226–6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792).

(d) Comptroller General Examination of Record. The Contractor shall comply with the provisions of this paragraph (d) if this contract was awarded using other than sealed bid, is in excess of the simplified acquisition threshold, as defined in FAR 2.101, on the date of award of this contract, and does not contain the clause at 52.215-2, Audit and Records—Negotiation.

(1) The Comptroller General of the United States, or an authorized representative of the Comptroller General, shall have access to and right to examine any of the Contractor's directly pertinent records involving transactions related to this contract.

(2) The Contractor shall make available at its offices at all reasonable times the records, materials, and other evidence for examination, audit, or reproduction, until 3 years after final payment under this contract or for any shorter period specified in FAR Subpart 4.7, Contractor Records Retention, of the other clauses of this contract. If this contract is completely or partially terminated, the records relating to the work terminated shall be made available for 3 years after any resulting final termination settlement. Records relating to appeals under the disputes clause or to litigation or the settlement of claims arising under or relating to this contract shall be made available until such appeals, litigation, or claims are finally resolved.

(3) As used in this clause, records include books, documents, accounting procedures and practices, and other data, regardless of type and regardless of form. This does not require the Contractor to create or maintain any record that the Contractor does not maintain in the ordinary course of business or pursuant to a provision of law.

(e)(1) Notwithstanding the requirements of the clauses in paragraphs (a), (b), (c), and (d) of this clause, the Contractor is not required to flow down any FAR clause, other than those in this paragraph (e)(1) in a subcontract for commercial products or commercial services. Unless otherwise indicated below, the extent of the flow down shall be as required by the clause—

(i) 52.203–13, Contractor Code of Business Ethics and Conduct (NOV 2021) (41 U.S.C. 3509).

(ii) 52.203–17, Contractor Employee Whistleblower Rights (NOV 2023) (41 U.S.C. 4712).

(iii) 52.203-19, Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (JAN 2017) (section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions)).

(iv) 52.204–23, Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities (DEC 2023) (Section 1634 of Pub. L. 115–91).

(v) 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment. (NOV 2021) (Section 889(a)(1)(A) of Pub. L. 115–232).

(vi) 52.204–27, Prohibition on a ByteDance Covered Application (JUN 2023) (Section 102 of Division R of Pub. L. 117–328).

(vii) (A) 52.204–30, Federal Acquisition Supply Chain Security Act Orders— Prohibition. (DEC 2023) (Pub. L. 115–390, title II).

(B) Alternate I (DEC 2023) of 52.204–30.

(viii) 52.219–8, Utilization of Small Business Concerns (FEB 2024) (15 U.S.C. 637(d)(2) and (3)), in all subcontracts that offer further subcontracting opportunities. If the subcontract (except subcontracts to small business concerns) exceeds the applicable threshold specified in FAR 19.702(a) on the date of subcontract award, the subcontractor must include 52.219–8 in lower tier subcontracts that offer subcontracting opportunities.

(ix) 52.222-21, Prohibition of Segregated Facilities (APR 2015).

(x) 52.222–26, Equal Opportunity (SEP 2016) (E.O. 11246).

(xi) 52.222–35, Equal Opportunity for Veterans (JUN 2020) (38 U.S.C. 4212).

(xii) 52.222–36, Equal Opportunity for Workers with Disabilities (JUN 2020) (29 U.S.C. 793).

(xiii) 52.222–37, Employment Reports on Veterans (JUN 2020) (38 U.S.C. 4212).

(xiv) 52.222-40, Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (E.O. 13496). Flow down required in accordance with paragraph (f) of FAR clause 52.222-40.

(xv) 52.222-41, Service Contract Labor Standards (AUG 2018) (41 U.S.C. chapter 67).

(xvi)(A) 52.222-50, Combating Trafficking in Persons (NOV 2021) (22 U.S.C. chapter 78 and E.O. 13627).

(B) Alternate I (MAR 2015) of 52.222-50 (22 U.S.C. chapter 78 and E.O. 13627).

(xvii) 52.222-51, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment—Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xviii) 52.222-53, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services—Requirements (MAY 2014) (41 U.S.C. chapter 67).

(xix) 52.222-54, Employment Eligibility Verification (MAY 2022) (E. O. 12989).

(xx) 52.222-55, Minimum Wages for Contractor Workers Under Executive Order 14026 (JAN 2022).

(xxi) 52.222-62 Paid Sick Leave Under Executive Order 13706 (JAN 2022) (E.O. 13706).

(xxii)(A) 52.224-3, Privacy Training (JAN 2017) (5 U.S.C. 552a).

(B) Alternate I (JAN 2017) of 52.224-3.

(xxiii) 52.225–26, Contractors Performing Private Security Functions Outside the United States (OCT 2016) (Section 862, as amended, of the National Defense Authorization Act for Fiscal Year 2008; 10 U.S.C. Subtitle A, Part V, Subpart G Note).

(xxiv) 52.226–6, Promoting Excess Food Donation to Nonprofit Organizations (JUN 2020) (42 U.S.C. 1792). Flow down required in accordance with paragraph (e) of FAR clause 52.226-6.

(xxv) 52.232–40, Providing Accelerated Payments to Small Business Subcontractors (MAR 2023) (31 U.S.C. 3903 and 10 U.S.C. 3801). Flow down required in accordance with paragraph (c) of 52.232–40.

(xxvi) 52.240–1, Prohibition on Unmanned Aircraft Systems Manufactured or Assembled by American Security Drone Act—Covered Foreign Entities (NOV 2024) (Sections 1821–1826, Pub. L. 118–31, 41 U.S.C.3901 note prec.).

(xxvii) 52.247-64, Preference for Privately Owned U.S.-Flag Commercial Vessels (NOV 2021) (46 U.S.C. 55305 and 10 U.S.C. 2631). Flow down required in accordance with paragraph (d) of FAR clause 52.247-64.

(2) While not required, the Contractor may include in its subcontracts for commercial products and commercial services a minimal number of additional clauses necessary to satisfy its contractual obligations.

(End of Clause)

SECTION D - CONTRACT DOCUMENTS, EXHIBITS, OR ATTACHMENTS

SECTION E - SOLICITATION PROVISIONS

E.1 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (SEP 2023)

(a) *North American Industry Classification System (NAICS) code and small business size standard.* The NAICS code(s) and small business size standard(s) for this acquisition appear elsewhere in the solicitation. However, the small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition—

- (1) Is set aside for small business and has a value above the simplified acquisition threshold;
- (2) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or
- (3) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. Offers may be submitted on the SF 1449, letterhead stationery, or as otherwise specified in the solicitation. As a minimum, offers must show—

- (1) The solicitation number;
- (2) The time specified in the solicitation for receipt of offers;
- (3) The name, address, and telephone number of the offeror;
- (4) A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;
- (5) Terms of any express warranty;
- (6) Price and any discount terms;
- (7) "Remit to" address, if different than mailing address;
- (8) A completed copy of the representations and certifications at Federal Acquisition Regulation (FAR) 52.212-3 (see FAR 52.212-3(b) for those representations and certifications that the offeror shall complete electronically);
- (9) Acknowledgment of Solicitation Amendments;

(10) Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items and other references (including contract numbers, points of contact with telephone numbers and other relevant information); and

(11) If the offer is not submitted on the SF 1449, include a statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation may be excluded from consideration.

(c) *Period for acceptance of offers.* The offeror agrees to hold the prices in its offer firm for 30 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(d) *Product samples.* When required by the solicitation, product samples shall be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in this solicitation, these samples shall be submitted at no expense to the Government, and returned at the sender's request and expense, unless they are destroyed during preaward testing.

(e) *Multiple offers.* Offerors are encouraged to submit multiple offers presenting alternative terms and conditions, including alternative line items (provided that the alternative line items are consistent with FAR subpart 4.10), or alternative commercial products or commercial services for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.

(f) Late submissions, modifications, revisions, and withdrawals of offers.

(1) Offerors are responsible for submitting offers, and any modifications, revisions, or withdrawals, so as to reach the Government office designated in the solicitation by the time specified in the solicitation. If no time is specified in the solicitation, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that offers or revisions are due.

(2)(i) Any offer, modification, revision, or withdrawal of an offer received at the Government office designated in the solicitation after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and—

(A) If it was transmitted through an electronic commerce method authorized by the solicitation, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of offers; or

(B) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(C) If this solicitation is a request for proposals, it was the only proposal received.

(ii) However, a late modification of an otherwise successful offer, that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(3) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the offer wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(4) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(5) Offers may be withdrawn by written notice received at any time before the exact time set for receipt of offers. Oral offers in response to oral solicitations may be withdrawn orally. If the solicitation authorizes facsimile offers, offers may be withdrawn via facsimile received at any time before the exact time set for receipt of offers, subject to the conditions specified in the solicitation concerning facsimile offers. An offer may be withdrawn in person by an offeror or its authorized representative if, before the exact time set for receipt of offers, the identity of the person requesting withdrawal is established and the person signs a receipt for the offer.

(g) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. However, the Government reserves the right to conduct discussions if later determined by the Contracting Officer to be necessary. The Government may reject any or all offers if such action is in the public interest; accept other than the lowest offer; and waive informalities and minor irregularities in offers received.

(h) *Multiple awards*. The Government may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(i) Availability of requirements documents cited in the solicitation.

(1)(i) The GSA Index of Federal Specifications, Standards and Commercial Item Descriptions, FPMR Part 101-29, and copies of specifications, standards, and product descriptions can be downloaded from the ASSIST website at <https://assist.dla.mil>.

(ii) If the General Services Administration, Department of Agriculture, or Department of Veterans Affairs issued this solicitation, a copy of specifications, standards, and commercial item descriptions cited in this solicitation may be obtained from the address in paragraph (i)(1)(i) of this provision.

(2) Most unclassified Defense specifications and standards may be downloaded from the ASSIST website at <https://assist.dla.mil>.

(3) Defense documents not available from the ASSIST website may be requested from the Defense Standardization Program Office by-

(i) Using the ASSIST feedback module (<https://assist.dla.mil/feedback>); or

(ii) Contacting the Defense Standardization Program Office by telephone at 571-767-6688 or email at assisthelp@dlamail.

(4) Nongovernment (voluntary) standards must be obtained from the organization responsible for their preparation, publication, or maintenance.

(j) *Unique entity identifier.* (Applies to all offers that exceed the micro-purchase threshold, and offers at or below the micro-purchase threshold if the solicitation requires the Contractor to be registered in the System for Award Management (SAM).) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the unique entity identifier that identifies the Offeror's name and address. The Offeror also shall enter its Electronic Funds Transfer (EFT) indicator, if applicable. The EFT indicator is a four-character suffix to the unique entity identifier. The suffix is assigned at the discretion of the Offeror to establish additional SAM records for identifying alternative EFT accounts (see FAR subpart 32.11) for the same entity. If the Offeror does not have a unique entity identifier, it should contact the entity designated at www.sam.gov for unique entity identifier establishment directly to obtain one. The Offeror should indicate that it is an offeror for a Government contract when contacting the entity designated at www.sam.gov for establishing the unique entity identifier.

(k) [Reserved]

(l) *Debriefing.* If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(1) The agency's evaluation of the significant weak or deficient factors in the debriefed offeror's offer.

(2) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(3) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award;

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(6) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities were followed by the agency.

(End of Provision)

ADDENDUM to FAR 52.212-1 INSTRUCTIONS TO OFFERORS—COMMERCIAL ITEMS

Provisions that are incorporated by reference have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation:

(b) Submission of Offers:

TECHNICAL QUESTIONS:

Technical questions shall be accepted by the Government in writing no later than 5:00pm Central Standard Time (CST), 12-11-2024. Please list "Technical Questions – Solicitation 36C26325Q0265" in subject line of e-mail and send to Erica Miller, Contract Specialist, at erica.miller5@va.gov. Please include in your questions the section of the solicitation/page number of the solicitation it is in reference to.

OFFER SUBMITTAL INSTRUCTIONS:

Offeror shall submit offers by Due Date/Time specified in Block 8 of Standard Form (SF) 1449 of solicitation to Erica Miller, Contract Specialist, at erica.miller5@va.gov

Subject line of e-mail shall be "Quote – Solicitation 36C26325Q0265" in subject line.

Offer shall also include the following, submitted as one single document, not to exceed 30 pages in minimum 11-point Arial, Calibri, Courier, or Times New Roman font:

- a) Signed Standard Form (SF) 1449 page of solicitation
- b) Signed SF30 Forms acknowledging solicitation amendments, if applicable
- c) Offerors shall state their ability to meet the limitations on subcontracting as listed in Section C.6 of solicitation. The offeror shall provide narrative information with their quote to demonstrate their ability to meet this requirement, including what percentage, if applicable, they would be subcontracting to other businesses, to also include name of business, point of contact, point of contact e-mail, and point of contact phone number.
- d) Offerors must state their understanding of the requirements to pay in accordance with the Service

Contract Labor Standards. The resulting contract is subject to the applicable provisions of 41 U.S.C. chapter 67, Service Contract Labor Standards, and regulations of the Secretary of Labor (29 CFR Part 4). Reference FAR Clause 52.222-41 and Solicitation Attachment 1 (USDOL Wage Determinations). Each service employee employed in the performance of the contract by the contractor or any subcontractor shall be paid not less than the minimum monetary wages and

shall be furnished fringe benefits in accordance with the wages and fringe benefits determined by the Secretary of Labor, or authorized representative, as specified in Solicitation Attachment 1(USDOL Wage Determinations). The offeror shall provide narrative information with their quote to demonstrate their ability to meet this requirement.

e) Offeror shall provide narrative providing description of existing capability to meet the requirements contained in Section B.2 (Statement of Work). Narrative should be in as much detail as possible to fully explain the proposed technical approach. Narrative shall reflect a clear understanding of the nature of the work being undertaken. Narrative shall include information on how the work is to be organized, staffed, and managed.

f) Pricing: Contractor shall submit pricing in accordance with format listed in B.3 (Price Schedule); firm fixed pricing shall include all labor, overhead, profit, materials, and associated costs of the like to provide services to VA NWI Health Care System. Pricing may be submitted in PDF or Microsoft Excel format similar to B.3 (Price Schedule), but pricing shall not be handwritten on B.3 (Price Schedule) and submitted on that basis.

(g) Period for acceptance of offers is changed to: The offeror agrees to hold the prices in its offer firm for 180 calendar days from the date specified for receipt of offers.

(End of Provision)

E.2 52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it “does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument” in paragraph (c)(1) in the provision at 52.204–26, Covered Telecommunications Equipment or Services—Representation, or in paragraph (v)(2)(i) of the provision at 52.212–3, Offeror Representations and Certifications—Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it “does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services” in paragraph (c)(2) of the provision at 52.204–26, or in paragraph (v)(2)(ii) of the provision at 52.212–3.

(a) *Definitions.* As used in this provision—

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) *Prohibition.* (1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115–232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or

obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115–232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to—

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services.”

(d) *Representations.* The Offeror represents that—

(1) It [] will, [] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds “will” in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that—

It [] does, [] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds “does” in paragraph (d)(2) of this section.

(e) *Disclosures.* (1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded “will” in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded “does” in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment—

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services—

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of Provision)

E.3 52.204-29 FEDERAL ACQUISITION SUPPLY CHAIN SECURITY ACT ORDERS—REPRESENTATION AND DISCLOSURES (DEC 2023)

(a) *Definitions.* As used in this provision, *Covered article*, *FASCSA order*, *Intelligence community*, *National security system*, *Reasonable inquiry*, *Sensitive compartmented information*, *Sensitive compartmented information system*, and *Source* have the meaning provided in the clause 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(b) *Prohibition.* Contractors are prohibited from providing or using as part of the performance of the contract any covered article, or any products or services produced or provided by a source, if the prohibition is set out in an applicable Federal Acquisition Supply Chain Security Act (FASCSA) order, as described in paragraph (b)(1) of FAR 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(c) *Procedures.* (1) The Offeror shall search for the phrase “FASCSA order” in the System for Award Management (SAM)(<https://www.sam.gov>) for any covered article, or any products or services produced or provided by a source, if there is an applicable FASCSA order described in paragraph (b)(1) of FAR 52.204–30, Federal Acquisition Supply Chain Security Act Orders—Prohibition.

(2) The Offeror shall review the solicitation for any FASCSA orders that are not in SAM, but are effective and do apply to the solicitation and resultant contract (see FAR 4.2303(c)(2)).

(3) FASCSA orders issued after the date of solicitation do not apply unless added by an amendment to the solicitation.

(d) *Representation.* By submission of this offer, the offeror represents that it has conducted a reasonable inquiry, and that the offeror does not propose to provide or use in response to this solicitation any covered article, or any products or services produced or provided by a source, if the covered article or the source is prohibited by an applicable FASCSA order in effect on the date the solicitation was issued, except as waived by the solicitation, or as disclosed in paragraph (e).

(e) *Disclosures.* The purpose for this disclosure is so the Government may decide whether to issue a waiver. For any covered article, or any products or services produced or provided by a source, if the covered article or the source is subject to an applicable FASCSA order, and the

Offeror is unable to represent compliance, then the Offeror shall provide the following information as part of the offer:

- (1) Name of the product or service provided to the Government;
 - (2) Name of the covered article or source subject to a FASCSA order;
 - (3) If applicable, name of the vendor, including the Commercial and Government Entity code and unique entity identifier (if known), that supplied the covered article or the product or service to the Offeror;
 - (4) Brand;
 - (5) Model number (original equipment manufacturer number, manufacturer part number, or wholesaler number);
 - (6) Item description;
 - (7) Reason why the applicable covered article or the product or service is being provided or used;
- (f) *Executive agency review of disclosures.* The contracting officer will review disclosures provided in paragraph (e) to determine if any waiver may be sought. A contracting officer may choose not to pursue a waiver for covered articles or sources otherwise subject to a FASCSA order and may instead make an award to an offeror that does not require a waiver.

(End of Provision)

E.4 52.209-7 INFORMATION REGARDING RESPONSIBILITY MATTERS (OCT 2018)

(a) *Definitions.* As used in this provision—

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (e.g., Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than \$10,000,000" means—

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (e.g., general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror [] has [] does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in—

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of Provision)

E.5 52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a Firm-Fixed-Price contract resulting from this solicitation.

(End of Provision)

E.6 52.233-2 SERVICE OF PROTEST (SEP 2006)

Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer (addressed as follows) by obtaining written and dated acknowledgment of receipt from:

Electronic Address:

Department of Veterans Affairs

Jesse Sweesy
jesse.sweesy@va.gov

(b) The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
852.233-70	PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION	OCT 2018

E.7 VAAR 852.233-71 ALTERNATE PROTEST PROCEDURE (OCT 2018)

(a) As an alternative to filing a protest with the Contracting Officer, an interested party may file a protest by mail or electronically with: Executive Director, Office of Acquisition and Logistics, Risk Management and Compliance Service (003A2C), Department of Veterans Affairs, 810 Vermont Avenue NW, Washington, DC 20420 or Email: EDProtests@va.gov.

(b) The protest will not be considered if the interested party has a protest on the same or similar issue(s) pending with the Contracting Officer.

(End of Provision)

PLEASE NOTE: The correct mailing information for filing alternate protests is as follows:

Deputy Assistant Secretary for Acquisition and Logistics,
Risk Management Team, Department of Veterans Affairs
810 Vermont Avenue, N.W.
Washington, DC 20420

Or for solicitations issued by the Office of Construction and Facilities Management:

Director, Office of Construction and Facilities Management
811 Vermont Avenue, N.W.
Washington, DC 20420

E.8 52.252-1 SOLICITATION PROVISIONS INCORPORATED BY REFERENCE (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

<https://www.acquisition.gov/browse/index/far>

<https://www.va.gov/oal/library/vaar/>

(End of Provision)

<u>FAR Number</u>	<u>Title</u>	<u>Date</u>
52.204-7	SYSTEM FOR AWARD MANAGEMENT	NOV 2024
52.204-16	COMMERCIAL AND GOVERNMENT ENTITY CODE REPORTING	AUG 2020
52.217-5	EVALUATION OF OPTIONS	JUL 1990
52.229-11	TAX ON CERTAIN FOREIGN PROCUREMENTS—NOTICE AND REPRESENTATION	JUN 2020
852.239-75	INFORMATION AND COMMUNICATION TECHNOLOGY ACCESSIBILITY NOTICE	FEB 2023

(End of Addendum to 52.212-1)

ADDENDUM to 52.212-2 EVALUATION—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

(a) *Basis for Award.* The Government will issue a purchase order to the responsible quoter whose quotation conforming to the solicitation will be most advantageous to the Government, price and other factors considered.

(b) The following factors shall be used to evaluate quotations. The Government will award a contract resulting from this solicitation to the responsible offeror whose offer conforming to the solicitation will be most advantageous to the Government, price and other factors considered. The following factors shall be used to evaluate offers:

- (1) Technical
- (2) Past Performance
- (3) Veterans Involvement
- (4) Past Performance

(c) *Evaluation Approach.* The Government will evaluate quotations using the comparative evaluation process outlined in FAR 13.106-2 (b) (3), where quotations will be compared to one another to determine which provides the best benefit to the Government. The Government reserves the right to consider a quotation other than the lowest price that provides additional benefit(s). Quotations may

exceed minimum requirements of the solicitation. The Government reserves the right to select a quotation that provides benefit to the Government that exceeds the minimum requirements of the solicitation, but is not required to do so. Each response must meet the minimum requirements of the solicitation. The Government is not requesting or accepting alternate quotations. The evaluation will consider the following:

(1) Technical or Quality: The quotation will be evaluated to the extent to which it can meet and/or exceed the Government's requirements as outlined in the solicitation and based on the information requested in the instructions to quoters section of the solicitation.

(2) Past Performance: The past performance evaluation will assess the relative risks associated with a quoter's likelihood of success in fulfilling the solicitation's requirements as indicated by the quoter's record of past performance. The past performance evaluation may be based on the contracting officer's knowledge of and previous experience with the supply or service being acquired; Customer surveys, and past performance questionnaire replies; Contractor Performance Assessment Reporting System (CPARS) at <http://www.cpars.gov/>; or any other reasonable basis.

(3) Veterans Involvement: In accordance with Veterans Affairs Acquisition Regulation (VAAR) 852.215-70 (DEVIATION), Service-Disabled Veteran-Owned and Veteran-Owned Small Business (VOSB) Evaluation Factors, the Government will assign evaluation credit for a Quoter (i.e., prime contractor) which is a Service-Disabled Veteran-Owned Small Business (SDVOSB) or a VOSB. To receive credit, an offeror must be registered and verified in Vendor Information Pages (VIP) database at time of quotation submission and at time of award (<https://www.vip.vetbiz.va.gov/>) and must meet federal small business size standards for the North American Industry Classification System (NAICS) code assigned to this solicitation. Non-SDVOSB/VOSB quotations that use SDVOSBs or VOSBs as subcontractors will receive some consideration under this evaluation Factor. Quoters must state in their quotations the names of the SDVOSBs and VOSBs with whom they intend to subcontract and provide a brief description of the proposed subcontracts and the approximate dollar values of the proposed subcontracts. In addition, the proposed subcontractors must be registered and verified in the VetBiz.gov VIP database (<https://www.vip.vetbiz.va.gov/>) and must meet federal small business size standards for the NAICS code assigned to this solicitation at time of both quotation submission and at time of award.

(4) Price: The Government will evaluate the price by adding the total of all line item prices, including all options. The Total Evaluated Price will be that sum.

(d) Options. The Government will evaluate quotations for award purposes by adding the total price for all options to the total price for the basic requirement.

E.9 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS— COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAY 2024)

The Offeror shall complete only paragraph (b) of this provision if the Offeror has completed the annual representations and certification electronically in the System for Award Management (SAM) accessed through <https://www.sam.gov>. If the Offeror has not completed the annual

representations and certifications electronically, the Offeror shall complete only paragraphs (c) through (v) of this provision.

(a) *Definitions.* As used in this provision—

Covered telecommunications equipment or services has the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR 127, and the concern is identified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business eligible under the WOSB Program.

Forced or indentured child labor means all work or service—

(1) Exacted from any person under the age of 18 under the menace of any penalty for its nonperformance and for which the worker does not offer himself voluntarily; or

(2) Performed by any person under the age of 18 pursuant to a contract the enforcement of which can be accomplished by process or penalties.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

Inverted domestic corporation means a foreign incorporated entity that meets the definition of an inverted domestic corporation under 6 U.S.C. 395(b), applied in accordance with the rules and definitions of 6 U.S.C. 395(c).

Manufactured end product means any end product in product and service codes (PSCs) 1000-9999, except—

- (1) PSC 5510, Lumber and Related Basic Wood Materials;
- (2) Product or Service Group (PSG) 87, Agricultural Supplies;
- (3) PSG 88, Live Animals;
- (4) PSG 89, Subsistence;
- (5) PSC 9410, Crude Grades of Plant Materials;

- (6) PSC 9430, Miscellaneous Crude Animal Products, Inedible;
- (7) PSC 9440, Miscellaneous Crude Agricultural and Forestry Products;
- (8) PSC 9610, Ores;
- (9) PSC 9620, Minerals, Natural and Synthetic; and
- (10) PSC 9630, Additive Metal Materials.

Place of manufacture means the place where an end product is assembled out of components, or otherwise made or processed from raw materials into the finished product that is to be provided to the Government. If a product is disassembled and reassembled, the place of reassembly is not the place of manufacture.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Reasonable inquiry has the meaning provided in the clause 52.204–25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

Restricted business operations means business operations in Sudan that include power production activities, mineral extraction activities, oil-related activities, or the production of military equipment, as those terms are defined in the Sudan Accountability and Divestment Act of 2007 (Pub. L. 110-174). Restricted business operations do not include business operations that the person (as that term is defined in Section 2 of the Sudan Accountability and Divestment Act of 2007) conducting the business can demonstrate—

- (1) Are conducted under contract directly and exclusively with the regional government of southern Sudan;
- (2) Are conducted pursuant to specific authorization from the Office of Foreign Assets Control in the Department of the Treasury, or are expressly exempted under Federal law from the requirement to be conducted under such authorization;
- (3) Consist of providing goods or services to marginalized populations of Sudan;
- (4) Consist of providing goods or services to an internationally recognized peacekeeping force or humanitarian organization;
- (5) Consist of providing goods or services that are used only to promote health or education; or
- (6) Have been voluntarily suspended.

Sensitive technology—

(1) Means hardware, software, telecommunications equipment, or any other technology that is to be used specifically—

- (i) To restrict the free flow of unbiased information in Iran; or

(ii) To disrupt, monitor, or otherwise restrict speech of the people of Iran; and

(2) Does not include information or informational materials the export of which the President does not have the authority to regulate or prohibit pursuant to section 203(b)(3) of the International Emergency Economic Powers Act (50 U.S.C. 1702(b)(3)).

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern—

(1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran; or

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) *Service-disabled veteran*, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that—

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern—

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and size standards in this solicitation.

(2) *Affiliates*, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that—

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by—

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States; and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals, who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Subsidiary means an entity in which more than 50 percent of the entity is owned—

(1) Directly by a parent corporation; or

(2) Through another subsidiary of a parent corporation.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term “successor” does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

Veteran-owned small business concern means a small business concern—

(1) Not less than 51 percent of which is owned and controlled by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned business concern means a concern which is at least 51 percent owned by one or more women; or in the case of any publicly owned business, at least 51 percent of its stock is owned by one or more women; and whose management and daily business operations are controlled by one or more women.

Women-owned small business concern means a small business concern—

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127), means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) Annual Representations and Certifications. Any changes provided by the Offeror in paragraph (b)(2) of this provision do not automatically change the representations and certifications in SAM.

(2) The offeror has completed the annual representations and certifications electronically in SAM accessed through <http://www.sam.gov>. After reviewing SAM information, the Offeror verifies by submission of this offer that the representations and certifications currently posted electronically at FAR 52.212–3, Offeror Representations and Certifications—Commercial Products and Commercial Services, have been entered or updated in the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard(s) applicable to the NAICS code(s) referenced for this solicitation), at the time this offer is submitted and are incorporated in this offer by reference (see FAR 4.1201), except for paragraphs .

(c) Offerors must complete the following representations when the resulting contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii). Check all that apply.

(1) *Small business concern*. The offeror represents as part of its offer that—

(i) It ☐ is, ☐ is not a small business concern; or

(ii) It ☐ is, ☐ is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.*]

(2) *Veteran-owned small business concern*. [*Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.*] The offeror represents as part of its offer that it ☐ is, ☐ is not a veteran-owned small business concern.

(3) *SDVOSB concern*. [*Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(2) of this provision.*] The offeror represents that it ☐ is, ☐ is not an SDVOSB concern.

(4) *SDVOSB concern joint venture eligible under the SDVOSB Program*. The offeror represents that it ☐ is, ☐ is not an SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [*Complete only if the offeror represented itself as an SDVOSB concern in paragraph (c)(3) of this provision.*] [*The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____.*]

(5) *Small disadvantaged business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [] is, [] is not a small disadvantaged business concern as defined in 13 CFR 124.1001.

(6) *Women-owned small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [] is, [] is not a women-owned small business concern.

(7) *WOSB joint venture eligible under the WOSB Program.* [Complete only if the offeror represented itself as a women-owned small business concern in paragraph (c)(5) of this provision.] The offeror represents that it [] is, [] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

(8) *Economically disadvantaged women-owned small business (EDWOSB) joint venture.* The offeror represents that it [] is, [] is not a joint venture that complies with the requirements of 13 CFR part 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.]

Note to Paragraphs (c)(9) and (10): Complete paragraphs (c)(9) and (10) only if this solicitation is expected to exceed the simplified acquisition threshold.

(9) *Women-owned business concern (other than small business concern).* [Complete only if the offeror is a women-owned business concern and did not represent itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [] is a women-owned business concern.

(10) *Tie bid priority for labor surplus area concerns.* If this is an invitation for bid, small business offerors may identify the labor surplus areas in which costs to be incurred on account of manufacturing or production (by offeror or first-tier subcontractors) amount to more than 50 percent of the contract price:

(11) *HUBZone small business concern.* [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that—

(i) It [] is, [] is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It [] is, [] is not a HUBZone joint venture that complies with the requirements of 13 CFR Part 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: _____.] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Representations required to implement provisions of Executive Order 11246—

(1) *Previous contracts and compliance.* The offeror represents that—

(i) It [] has, [] has not participated in a previous contract or subcontract subject to the Equal Opportunity clause of this solicitation; and

(ii) It [] has, [] has not filed all required compliance reports.

(2) *Affirmative Action Compliance.* The offeror represents that—

(i) It [] has developed and has on file, [] has not developed and does not have on file, at each establishment, affirmative action programs required by rules and regulations of the Secretary of Labor (41 CFR parts 60-1 and 60-2), or

(ii) It [] has not previously had contracts subject to the written affirmative action programs requirement of the rules and regulations of the Secretary of Labor.

(e) *Certification Regarding Payments to Influence Federal Transactions* (31 U.S.C. 1352). (Applies only if the contract is expected to exceed \$150,000.) By submission of its offer, the offeror certifies to the best of its knowledge and belief that no Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress or an employee of a Member of Congress on his or her behalf in connection with the award of any resultant contract. If any registrants under the Lobbying Disclosure Act of 1995 have made a lobbying contact on behalf of the offeror with respect to this contract, the offeror shall complete and submit, with its offer, OMB Standard Form LLL, Disclosure of Lobbying Activities, to provide the name of the registrants. The offeror need not report regularly employed officers or employees of the offeror to whom payments of reasonable compensation were made.

(f) *Buy American Certificate.* (Applies only if the clause at Federal Acquisition Regulation (FAR) 52.225-1, Buy American—Supplies, is included in this solicitation.)

(1)(i) The Offeror certifies that each end product, except those listed in paragraph (f)(2) of this provision, is a domestic end product and that each domestic end product listed in paragraph (f)(3) of this provision contains a critical component.

(ii) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

(iii) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).

(iv) The terms “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Supplies.”

(2) Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(3) Domestic end products containing a critical component: Line Item No. _____

[List as necessary]

(4) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(g)(1) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate*. (Applies only if the clause at FAR 52.225-3, Buy American—Free Trade Agreements—Israeli Trade Act, is included in this solicitation.)

(i)(A) The Offeror certifies that each end product, except those listed in paragraph (g)(1)(ii) or (iii) of this provision, is a domestic end product and that each domestic end product listed in paragraph (g)(1)(iv) of this provision contains a critical component.

(B) The terms “Bahraini, Moroccan, Omani, Panamanian, or Peruvian end product,” “commercially available off-the-shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(ii) The Offeror certifies that the following supplies are Free Trade Agreement country end products (other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian end products) or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

Free Trade Agreement Country End Products (Other than Bahraini, Moroccan, Omani, Panamanian, or Peruvian End Products) or Israeli End Products:

Line item No.	Country of origin

[List as necessary]

(iii) The Offeror shall list those supplies that are foreign end products (other than those listed in paragraph (g)(1)(ii) of this provision) as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.” The Offeror shall list as other foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both, the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select “no”.

Other Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content (yes/no)

[List as necessary]

(iv) The Offeror shall list the line item numbers of domestic end products that contain a critical component (see FAR 25.105). Line Item No. _____

[List as necessary]

(v) The Government will evaluate offers in accordance with the policies and procedures of FAR part 25.

(2) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate, Alternate II.* If *Alternate II* to the clause at FAR 52.225-3 is included in this solicitation, substitute the following paragraph (g)(1)(ii) for paragraph (g)(1)(ii) of the basic provision:

(g)(1)(ii) The offeror certifies that the following supplies are Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Israeli End Products:

Line item No.	Country of origin

[List as necessary]

(3) *Buy American—Free Trade Agreements—Israeli Trade Act Certificate, Alternate III.* If *Alternate III* to the clause at 52.225-3 is included in this solicitation, substitute the following paragraphs (g)(1)(i)(B) and (g)(1)(ii) for paragraphs (g)(1)(i)(B) and (g)(1)(ii) of the basic provision:

(g)(1)(i)(B) The terms “Korean end product”, “commercially available off-the shelf (COTS) item,” “critical component,” “domestic end product,” “end product,” “foreign end product,” “Free Trade Agreement country,” “Free Trade Agreement country end product,” “Israeli end product,” and “United States” are defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act.”

(g)(1)(ii) The Offeror certifies that the following supplies are Korean end products or Israeli end products as defined in the clause of this solicitation entitled “Buy American—Free Trade Agreements—Israeli Trade Act”:

Korean End Products or Israeli End Products:

Line item No.	Country of origin

[List as necessary]

(4) *Trade Agreements Certificate*. (Applies only if the clause at FAR 52.225-5, Trade Agreements, is included in this solicitation.)

(i) The offeror certifies that each end product, except those listed in paragraph (g)(4)(ii) of this provision, is a U.S.-made or designated country end product, as defined in the clause of this solicitation entitled "Trade Agreements".

(ii) The offeror shall list as other end products those end products that are not U.S.-made or designated country end products.

Other End Products:

Line item No.	Country of origin

[List as necessary]

(iii) The Government will evaluate offers in accordance with the policies and procedures of FAR Part 25. For line items covered by the WTO GPA, the Government will evaluate offers of U.S.-made or designated country end products without regard to the restrictions of the Buy American statute. The Government will consider for award only offers of U.S.-made or designated country end products unless the Contracting Officer determines that there are no offers for such products or that the offers for such products are insufficient to fulfill the requirements of the solicitation.

(h) *Certification Regarding Responsibility Matters* (Executive Order 12689). (Applies only if the contract value is expected to exceed the simplified acquisition threshold.) The offeror certifies, to the best of its knowledge and belief, that the offeror and/or any of its principals—

(1) ☐ Are, ☐ are not presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency;

(2) ☐ Have, ☐ have not, within a three-year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a Federal, state or local government contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or Commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, violating Federal criminal tax laws, or receiving stolen property;

(3) ☐ Are, ☐ are not presently indicted for, or otherwise criminally or civilly charged by a Government entity with, commission of any of these offenses enumerated in paragraph (h)(2) of this clause; and

(4) [] Have, [] have not, within a three-year period preceding this offer, been notified of any delinquent Federal taxes in an amount that exceeds the threshold at 9.104–5(a)(2) for which the liability remains unsatisfied.

(i) Taxes are considered delinquent if both of the following criteria apply:

(A) *The tax liability is finally determined.* The liability is finally determined if it has been assessed. A liability is not finally determined if there is a pending administrative or judicial challenge. In the case of a judicial challenge to the liability, the liability is not finally determined until all judicial appeal rights have been exhausted.

(B) *The taxpayer is delinquent in making payment.* A taxpayer is delinquent if the taxpayer has failed to pay the tax liability when full payment was due and required. A taxpayer is not delinquent in cases where enforced collection action is precluded.

(ii) *Examples.*

(A) The taxpayer has received a statutory notice of deficiency, under I.R.C. Sec. 6212, which entitles the taxpayer to seek Tax Court review of a proposed tax deficiency. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek Tax Court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(B) The IRS has filed a notice of Federal tax lien with respect to an assessed tax liability, and the taxpayer has been issued a notice under I.R.C. Sec. 6320 entitling the taxpayer to request a hearing with the IRS Office of Appeals contesting the lien filing, and to further appeal to the Tax Court if the IRS determines to sustain the lien filing. In the course of the hearing, the taxpayer is entitled to contest the underlying tax liability because the taxpayer has had no prior opportunity to contest the liability. This is not a delinquent tax because it is not a final tax liability. Should the taxpayer seek tax court review, this will not be a final tax liability until the taxpayer has exercised all judicial appeal rights.

(C) The taxpayer has entered into an installment agreement pursuant to I.R.C. Sec. 6159. The taxpayer is making timely payments and is in full compliance with the agreement terms. The taxpayer is not delinquent because the taxpayer is not currently required to make full payment.

(D) The taxpayer has filed for bankruptcy protection. The taxpayer is not delinquent because enforced collection action is stayed under 11 U.S.C. 362 (the Bankruptcy Code).

(i) *Certification Regarding Knowledge of Child Labor for Listed End Products (Executive Order 13126).*

(1) *Listed end products.*

Listed end product	Listed countries of origin

(2) *Certification. [If the Contracting Officer has identified end products and countries of origin in paragraph (i)(1) of this provision, then the offeror must certify to either (i)(2)(i) or (i)(2)(ii) by checking the appropriate block.]*

☐ (i) The offeror will not supply any end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product.

☐ (ii) The offeror may supply an end product listed in paragraph (i)(1) of this provision that was mined, produced, or manufactured in the corresponding country as listed for that product. The offeror certifies that it has made a good faith effort to determine whether forced or indentured child labor was used to mine, produce, or manufacture any such end product furnished under this contract. On the basis of those efforts, the offeror certifies that it is not aware of any such use of child labor.

(j) *Place of manufacture.* (Does not apply unless the solicitation is predominantly for the acquisition of manufactured end products.) For statistical purposes only, the offeror shall indicate whether the place of manufacture of the end products it expects to provide in response to this solicitation is predominantly—

(1) ☐ In the United States (Check this box if the total anticipated price of offered end products manufactured in the United States exceeds the total anticipated price of offered end products manufactured outside the United States); or

(2) ☐ Outside the United States.

(k) *Certificates regarding exemptions from the application of the Service Contract Labor Standards.* (Certification by the offeror as to its compliance with respect to the contract also constitutes its certification as to compliance by its subcontractor if it subcontracts out the exempt services.) *[The contracting officer is to check a box to indicate if paragraph (k)(1) or (k)(2) applies.]*

☐ (1) Maintenance, calibration, or repair of certain equipment as described in FAR 22.1003-4(c)(1). The offeror ☐ does ☐ does not certify that—

(i) The items of equipment to be serviced under this contract are used regularly for other than Governmental purposes and are sold or traded by the offeror (or subcontractor in the case of an exempt subcontract) in substantial quantities to the general public in the course of normal business operations;

(ii) The services will be furnished at prices which are, or are based on, established catalog or market prices (see FAR 22.1003-4(c)(2)(ii)) for the maintenance, calibration, or repair of such equipment; and

(iii) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract will be the same as that used for these employees and equivalent employees servicing the same equipment of commercial customers.

☐ (2) Certain services as described in FAR 22.1003- 4(d)(1). The offeror ☐ does ☐ does not certify that—

(i) The services under the contract are offered and sold regularly to non-Governmental customers, and are provided by the offeror (or subcontractor in the case of an exempt subcontract) to the general public in substantial quantities in the course of normal business operations;

(ii) The contract services will be furnished at prices that are, or are based on, established catalog or market prices (see FAR 22.1003-4(d)(2)(iii));

(iii) Each service employee who will perform the services under the contract will spend only a small portion of his or her time (a monthly average of less than 20 percent of the available hours on an annualized basis, or less than 20 percent of available hours during the contract period if the contract period is less than a month) servicing the Government contract; and

(iv) The compensation (wage and fringe benefits) plan for all service employees performing work under the contract is the same as that used for these employees and equivalent employees servicing commercial customers.

(3) If paragraph (k)(1) or (k)(2) of this clause applies—

(i) If the offeror does not certify to the conditions in paragraph (k)(1) or (k)(2) and the Contracting Officer did not attach a Service Contract Labor Standards wage determination to the solicitation, the offeror shall notify the Contracting Officer as soon as possible; and

(ii) The Contracting Officer may not make an award to the offeror if the offeror fails to execute the certification in paragraph (k)(1) or (k)(2) of this clause or to contact the Contracting Officer as required in paragraph (k)(3)(i) of this clause.

(l) *Taxpayer Identification Number (TIN)* (26 U.S.C. 6109, 31 U.S.C. 7701). (Not applicable if the offeror is required to provide this information to SAM to be eligible for award.)

(1) All offerors must submit the information required in paragraphs (l)(3) through (l)(5) of this provision to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d), reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M, and implementing regulations issued by the Internal Revenue Service (IRS).

(2) The TIN may be used by the Government to collect and report on any delinquent amounts arising out of the offeror's relationship with the Government (31 U.S.C. 7701(c)(3)). If the resulting contract is subject to the payment reporting requirements described in FAR 4.904, the TIN provided hereunder may be matched with IRS records to verify the accuracy of the offeror's TIN.

(3) *Taxpayer Identification Number (TIN)*.

☐ TIN: _____.

☐ TIN has been applied for.

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government;

☐ Offeror is an agency or instrumentality of the Federal Government.

(4) *Type of organization.*

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4;

☐ Other _____.

(5) *Common parent.*

☐ Offeror is not owned or controlled by a common parent;

☐ Name and TIN of common parent:

Name _____.

TIN _____.

(m) *Restricted business operations in Sudan.* By submission of its offer, the offeror certifies that the offeror does not conduct any restricted business operations in Sudan.

(n) *Prohibition on Contracting with Inverted Domestic Corporations.*

(1) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(2) *Representation.* The Offeror represents that—

(i) It ☐ is, ☐ is not an inverted domestic corporation; and

(ii) It ☐ is, ☐ is not a subsidiary of an inverted domestic corporation.

(o) *Prohibition on contracting with entities engaging in certain activities or transactions relating to Iran.*

(1) The offeror shall email questions concerning sensitive technology to the Department of State at CISADA106@state.gov.

(2) *Representation and certifications.* Unless a waiver is granted or an exception applies as provided in paragraph (o)(3) of this provision, by submission of its offer, the offeror—

(i) Represents, to the best of its knowledge and belief, that the offeror does not export any sensitive technology to the government of Iran or any entities or individuals owned or controlled by, or acting on behalf or at the direction of, the government of Iran;

(ii) Certifies that the offeror, or any person owned or controlled by the offeror, does not engage in any activities for which sanctions may be imposed under section 5 of the Iran Sanctions Act; and

(iii) Certifies that the offeror, and any person owned or controlled by the offeror, does not knowingly engage in any transaction that exceeds the threshold at FAR 25.703–2(a)(2) with Iran’s Revolutionary Guard Corps or any of its officials, agents, or affiliates, the property and interests in property of which are blocked pursuant to the International Emergency Economic Powers Act (50 U.S.C. 1701 *et seq.*) (see OFAC’s Specially Designated Nationals and Blocked Persons List at <https://www.treasury.gov/resource-center/sanctions/SDN-List/Pages/default.aspx>).

(3) The representation and certification requirements of paragraph (o)(2) of this provision do not apply if—

(i) This solicitation includes a trade agreements certification (*e.g.*, 52.212–3(g) or a comparable agency provision); and

(ii) The offeror has certified that all the offered products to be supplied are designated country end products.

(p) *Ownership or Control of Offeror.* (Applies in all solicitations when there is a requirement to be registered in SAM or a requirement to have a unique entity identifier in the solicitation).

(1) The Offeror represents that it [] has or [] does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (2) and if applicable, paragraph (3) of this provision for each participant in the joint venture.

(2) If the Offeror indicates “has” in paragraph (p)(1) of this provision, enter the following information:

Immediate owner CAGE code: ____.

Immediate owner legal name: ____.

(Do not use a “doing business as” name)

Is the immediate owner owned or controlled by another entity: [] Yes or [] No.

(3) If the Offeror indicates “yes” in paragraph (p)(2) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code: ____.

Highest-level owner legal name: ____.

(Do not use a “doing business as” name)

(q) Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law.

(1) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, The Government will not enter into a contract with any corporation that—

(i) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(ii) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(2) The Offeror represents that—

(i) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(ii) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(r) Predecessor of Offeror. (Applies in all solicitations that include the provision at 52.204-16, Commercial and Government Entity Code Reporting.)

(1) The Offeror represents that it ☐ is or ☐ is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(2) If the Offeror has indicated “is” in paragraph (r)(1) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark “Unknown”).

Predecessor legal name: _____.

(Do not use a “doing business as” name).

(s) [Reserved]

(t) *Public Disclosure of Greenhouse Gas Emissions and Reduction Goals.* Applies in all solicitations that require offerors to register in SAM (12.301(d)(1)).

(1) This representation shall be completed if the Offeror received \$7.5 million or more in contract awards in the prior Federal fiscal year. The representation is optional if the Offeror received less than \$7.5 million in Federal contract awards in the prior Federal fiscal year.

(2) Representation. [Offeror to check applicable block(s) in paragraph (t)(2)(i) and (ii)]. (i) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose greenhouse gas emissions, i.e., makes available on a publicly accessible Web site the results of a greenhouse gas inventory, performed in accordance with an accounting standard with publicly available and consistently applied criteria, such as the Greenhouse Gas Protocol Corporate Standard.

(ii) The Offeror (itself or through its immediate owner or highest-level owner) ☐ does, ☐ does not publicly disclose a quantitative greenhouse gas emissions reduction goal, i.e., make available on a publicly accessible Web site a target to reduce absolute emissions or emissions intensity by a specific quantity or percentage.

(iii) A publicly accessible Web site includes the Offeror’s own Web site or a recognized, third-party greenhouse gas emissions reporting program.

(3) If the Offeror checked “does” in paragraphs (t)(2)(i) or (t)(2)(ii) of this provision, respectively, the Offeror shall provide the publicly accessible Web site(s) where greenhouse gas emissions and/or reduction goals are reported:_____.

(u)(1) In accordance with section 743 of Division E, Title VII, of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235) and its successor provisions in subsequent appropriations acts (and as extended in continuing resolutions), Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with an entity that requires employees or subcontractors of such entity seeking to report waste, fraud, or abuse to sign internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully reporting such waste, fraud, or abuse to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information.

(2) The prohibition in paragraph (u)(1) of this provision does not contravene requirements applicable to Standard Form 312 (Classified Information Nondisclosure Agreement), Form 4414 (Sensitive Compartmented Information Nondisclosure Agreement), or any other form issued by a Federal department or agency governing the nondisclosure of classified information.

(3) Representation. By submission of its offer, the Offeror represents that it will not require its employees or subcontractors to sign or comply with internal confidentiality agreements or statements prohibiting or otherwise restricting such employees or subcontractors from lawfully

reporting waste, fraud, or abuse related to the performance of a Government contract to a designated investigative or law enforcement representative of a Federal department or agency authorized to receive such information (e.g., agency Office of the Inspector General).

(v) *Covered Telecommunications Equipment or Services—Representation.* Section 889(a)(1)(A) and section 889(a)(1)(B) of [Public Law 115-232](#).

(1) The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for “covered telecommunications equipment or services”.

(2) The Offeror represents that—

(i) It ☐ does, ☐ does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(ii) After conducting a reasonable inquiry for purposes of this representation, that it ☐ does, ☐ does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of Provision)